

Apologia

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Apuleius

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Maximus Claudius, and you who are sitting here in judgment, I felt fully assured, that Sicinius Æmilianus, an old man, notorious for audacity, would, for want of substantial charges, fill up with nothing but abuse the accusation he undertook to make against me, before he had well considered the matter. Now any innocent person may be accused, hut no one can be proved guilty unless he is so. Relying especially on this consideration, by the Gods of heaven! I do rejoice that, with you for my judge, the power and the opportunity have fallen to my lot, of exculpating Philosophy in the eyes of the ignorant, and defending myself.

And yet these charges — serious-looking charges at first view — were made with a suddenness that tended to embarrass my defence. For, as you remember, five or six days ago, when I was beginning to plead the cause of my wife, Pudentilla, against the Granii, the advocates of this Æmilianus, by a concerted plan, and at a moment when I least expected it, assailed me with abuse, and accused me of magical practices, and even of the death of my step-son Pontianus. As I saw that these were not so much charges brought forward for judicial enquiry, as imputations for the mere purpose of abuse, I challenged them of my own accord, urgently and repeatedly, to prefer their accusation. But then Æmilianus, seeing that you too, Maximus, were considerably moved, and that a judicial affair had arisen out of his words, began, in distrust of his cause, to look about for some subterfuge from the consequences of his temerity.

Accordingly, when he, who shortly before had been crying out that Pontianus, his brother's son, had been murdered by me, was compelled to sign his name to the accusation, he instantly forgot all about the death of his young kinsman, and all of a sudden was mute as to the specification of a crime of such extreme atrocity. Still, that he might not seem altogether to have abandoned his charges, he selected this accusation of

magical practices — an accusation more easily made than proved — as the only one in which he should persist. And even that he did not dare do openly; but, on the day after, he gave in an indictment, in the name of my son-in-law, Sicinius Pudens, a mere boy, and annexed his own name thereto as his supporter; thus adopting a new fashion of making an attack in another's name; no doubt, in order that, by putting forward one so young, he himself might be screened from due punishment for his false accusation. When you, with great sagacity, perceived this to be the case, and thereupon commanded him again to support in his own name the accusation he had originally made, he promised that he would; but after all, he could not be prevailed upon to do so. While you are urging him to come to close action with me, he, in his contumacy, shoots his calumnious missiles even against yourself. Thus ever shunning the danger of making an open accusation, he persevered in the safe course of seconding it.

Accordingly, before the trial had even commenced, it was easy for any one to understand what would be the nature of the prosecution, the framer and contriver of which feared to undertake its responsibility. This was more especially the case, since the person in question was Sicinius Æmilianus; who, if he had ascertained anything substantial against me, would certainly never have manifested any such hesitation in impeaching one who was a stranger to himself, of crimes so numerous and so heinous — he who, well knowing that his uncle's will was genuine, denounced it as a forgery; and with such obstinacy, that when Lollius Urbicus, the pro-consul, with men of consular dignity sitting as his assessors, had pronounced that it was proved genuine, and ought to be held valid, still that madman persisted, with his voice raised to the loudest pitch, in swearing that the will was a forgery; so that Lollius Urbicus hardly refrained from visiting him with capital punishment. Relying on your justice and my own innocence, I trust that on

this trial also he will have occasion to burst forth into exclamations of a similar nature. For he knowingly accuses one who is innocent; and does so, no doubt, with the greater readiness, because, as I have said, he has already, on a trial of the greatest importance, been convicted of uttering falsehoods before the Prætor of the city.

For, as after having once committed a fault, every good man is the more careful to avoid it; so one who is evil-disposed repeats his offence with increased audacity; and, from that time forward, the more frequently he offends, the more undisguisedly he does so. For it is with shame as with a garment — the more it is worn, the less it is cared for.

For this reason, then, I deem it necessary, in order to maintain the integrity of my character, to refute all his malevolent aspersions before I come to the main charge. For I am undertaking not only my own defence, but that of philosophy also, whose high character spurns the least slur as though it were the weightiest of charges; for as much as the advocates of Æmilianus have been just now babbling forth with their mercenary loquacity, many things trumped up against myself individually, and many others that are commonly uttered by the ignorant against philosophers in general. Now, although it may be manifest that these charges are gabbled by them, in order to gain their fees, and to earn a premium for their impudence, according to a sort of usage now universally established among pettifogging pleaders of this sort — a race who are in the habit of letting out the venom of their viperous tongues to give pain to others — still, even for my own sake, they must be briefly rebutted; lest I, who am exerting all my energies, that I may not appear to admit of any stain or any blemish upon my character, might seem to some, in case I should pass by any of these frivolous charges, rather to have admitted them than to have held them in contempt.

For, according to my way of thinking, it is the part of a modest and honorable spirit to be incensed even by a false accusation; seeing that even those who are conscious to themselves of the commission of any offence, are still greatly excited and angered by reproach; although from the very moment that they began to do wrong, they may have been accustomed to hear themselves ill-spoken of. Nay, even if silence is observed by others, they are still fully conscious that they may with justice be censured. On the other hand, every man who is virtuous and without guile, whose ears are utterly unused to the language of obloquy, and who, from repeatedly hearing himself praised, is unprepared for reproach, is the more grieved at heart on hearing those things said undeservedly against him, which he could with truth allege against others. If then, perchance, I shall appear disposed to defend myself against charges that are absurd and utterly frivolous, that circumstance ought, in fairness, to be imputed as a fault to those who are disgraced by having even uttered them against me; and no blame ought to attach to me, in whom it will be becoming to have refuted even such things.

You heard, then, a short time since, at the commencement of the accusation, words to the following effect: “We accuse before you a handsome philosopher, and a man of distinguished eloquence,” — oh, monstrous!—” both in the Greek and in the Latin tongues.” For, unless I am mistaken, it was in these self-same words that Tannonius Pudens, a man most certainly not of distinguished eloquence, commenced his harangue against me. How I wish he had good grounds for making such weighty charges against me — of being possessed of good looks and of eloquence — I should have had no difficulty in answering him, as Paris does Hector, in Homer: “Man may not reject The glorious bounty by the Gods bestowed, Nor follows their beneficence our choice.”

Such would have been my answer to the charge of good looks: and I would have told him besides, that it has been deemed allowable even for philosophers to be of graceful appearance; I would have shown that Pythagoras, who was the first to call himself a philosopher, was the handsomest person of his age; that Zeno, of ancient times, the native of Elea, he who was the first of all, with truly critical skill, to divide speech into two departments,! that this same Zeno, too, was, as Plato affirms, most remarkable for the graces of his person.

I would also have told him that many other philosophers have been handed down to memory as most remarkable for the beauty of their features, and who have set off the graces of their persons by the virtues of their lives.

This mode of defence, however, as I have already observed, but ill becomes me; for, whereas naturally I had but small pretensions to good looks, unremitting application to learned labours has effaced from me all comeliness, has made me thin, dried up my natural juices, expunged my healthy colour, and impaired my vigour. This hair, which they, with falsehood so manifest, affirmed that I had allowed to grow to such a length, in order to add to the allurements of my beauty — you see how far it is from being handsome and neatly arranged — all clogged and matted together, like a rope of twisted tow, shaggy and uneven, lumped and felted; its knots inextricable through prolonged neglect, not only of combing, but even of disentangling and separating it. The charge, then, as to my hair, which they have made as it were a capital count in the indictment, has, I fancy, been sufficiently refuted.

And then, as to eloquence, if I had been possessed of any, it ought not to appear surprising, or a ground for envy, if, after devoting myself, with all my energies, from my earliest years up to the present moment, to the cultivation of literature alone, in contempt of all other pleasures, I had succeeded in acquiring it,

after expending upon it an amount of labour, by night and by day, exceeding, probably, that employed by any other man, and at the cost of a total disregard and sacrifice of my health. However, let them stand in no fear of my eloquence, an accomplishment which I am rather in hopes of acquiring, than able to display at present, if, indeed, I have made any progress at all.

And yet, if the words are true which Statius Caecilius is said to have written in his poems, that “Innocence is eloquence,” then, on that principle, I am ready to admit, and I do boldly assert, that in eloquence I will yield the palm to no man whatever. For, taking this view, what man living is there more eloquent than myself, who have never so much as entertained a thought to which I did not dare give utterance?

I affirm, that I am most truly eloquent, for all guiltiness I have ever esteemed as a thing not to be named; I affirm that I am most ready in argument, for no deed or saying of mine is there which I am not able, before all the world, by argument to support. For instance, I will now take up the argument with reference to the lines, which they put forward as compositions of mine, of which I ought to be ashamed; when you saw me smiling at them in scorn, because they delivered them in so uncouth and illiterate a manner.

In the first place, then, they read out of my book of jokes, a short letter, the subject of which was dentifrices; this was written in verse, to one Calpumianus, who, no doubt, when he produced that letter against me, did not perceive, in his eagerness to injure me, that if there was anything criminal in it, he himself was affected thereby in an equal degree with me. Now, that he had asked me for something to be used for the purpose of cleaning his teeth, the lines themselves bear witness — “In hurried verse, I bid Calpurnian hail.

I've sent, as you required, the dentifrice, Arabian produce, brightener of the mouth, A fine choice powder, a rare whitener, A soother of the swollen tender gums, A cleaner-out of scraps of yesterday; That no unsightly blemish may be seen, If you should chance with opened lips to laugh."

And now, pray, what do these lines contain, in meaning or in language, that I should at all be ashamed of? What is there that a philosopher should be at all unwilling to acknowledge as his own composition? Unless, perchance, I was deserving of reprehension for sending to Calpumianus a powder made of Arabian drugs, seeing that he was a person who might have with much more propriety, after the filthy manner of the Iberians, "With his own water washed his teeth and rusty gums,"

as Catullus says.

I perceived just now some who could hardly controul his laughter, when the orator inveighed with such asperity against cleaning of the teeth, and pronounced the word "dentifrice" with more indignation than any body else would speak of poison. And why should he not? No doubt it is a crime not to be overlooked in a philosopher, if he is particular in his precautions against dirt; if he allows no part of his body that is exposed to view to be unclean and filthy, the mouth especially, which man makes frequent use of openly and conspicuously: whether he kisses another, or discourses on any subject, or lectures before an audience, or repeats his prayers in a temple. For so it is that words precede every act of mankind; words which, as the first of poets says, issue forth from "the hedge of the teeth." If you could at the present day produce any one gifted with powers of utterance so grand as those with which he was endowed, he would declare in his usual manner, that from him above all men who has any care for the art of speaking, the mouth requires more sedulous attention than all the rest of the

body, seeing that it is the vestibule of the mind, the gateway of speech, and the outer court of the thoughts.

At all events, according to my way of thinking, I should say that nothing so ill becomes a man who is of free birth and liberal education as inattention to the appearance of the mouth. For this portion of the person is elevated in position, exposed full in view, and in continual use. On the other hand, with wild beasts and cattle the mouth is low' seated, and brought down on a level with the legs; it lies close to the feet and to the grass on which they feed, and is scarcely ever to be seen but when they are dead, or in a state of exasperation and ready to bite; whereas you look upon no feature before this in a man while he is silent, — no one more frequently while he is in the act of speaking. I only wish, now, that my censor, Æmilianus, would answer me this question: whether he is ever in the habit of washing his feet, or whether, if he does not deny the fact, he would contend that greater care ought to be bestowed upon the cleanliness of the feet than of the teeth? If, indeed, a person, like yourself, Æmilianus, will hardly ever open his mouth except to utter calumnies and revilings, I am clearly of opinion that he ought to bestow no attention whatever on his mouth, nor to clean his teeth with powders brought from abroad, when he might much more appropriately rub them with charcoal snatched from the funeral pile; and that he ought not so much as to rinse them with common water.

On the contrary, let his malignant tongue, the caterer of falsehoods and of bitter abuse, for ever lie amid the stench and foulness which so well become it. For how, in the name of misfortune, is it consistent with reason that one should have a clean and purified tongue, and at the same time a loathsome and offensive voice? that he should, like the viper, instil black venom from teeth white as snow? On the other hand, in the case of him who knows he is going to utter language that is neither

inappropriate nor unpleasing, it is with good reason that his mouth is washed beforehand, just like a cup when it is prepared for containing a pleasant draught.

But why enlarge any farther upon this topic, with regard to mankind? That huge beast, the crocodile, which is produced in the Nile, even it, as I am informed, opens wide its jaws, and, without inflicting injury, allows its teeth to be cleansed. For as it has an immense mouth and no tongue, and generally lies concealed beneath the water, numbers of leeches fasten about its teeth; wherefore it repairs to the banks of the river, and opens its mouth, and one of the river birds, a friend to it, thrusts in her beak and picks its teeth, without incurring any risk.

No more of this. I now come to the rest of these love verses, as they style them; but which they read in such harsh and uncouth tones, as rather to provoke hatred.

But really, what has it to do with magical practices, if I did celebrate in verse the children of my friend Scribonius? Am I of necessity a magician, because I am a poet? Who ever heard tell of a suspicion like this, a conjecture so happy, an argument so convincing? “Apuleius has composed verses if they were bad ones, it is a fault, no doubt, but then it is not the fault of the philosopher, but of the poet. If, on the other hand, they were good ones, on what grounds do you accuse him?— “But then,” say you, “he composed verses of a jocular and amorous character.” Is this, then, your charge against me, and did you make a mistake in the name, when you accused me of practising magic? And yet other persons have done the same: among the Greeks (if you are not aware of the fact), a Teian, a Lacedaemonian, a Ceian, and innumerable others; a woman, too, a native of Lesbos, wrote in wanton numbers, and with such gracefulness, as to reconcile us to the strangeness of her dialect by the sweetness of her lines; then, among ourselves, Ædituus, and Portius, and Catullus, and others without number.

“But these were not philosophers,” you say. Will you go so far, pray, as to deny that Solon was a man of serious habits and a philosopher? and yet he was the composer of that most wanton line, “Desirous of her thighs and honeyed mouth.”

Now what is there in all my verses put together, to be compared in lasciviousness of expression with this one line? not to say a word about the writings of Diogenes, the cynic, and of Zeno, the founder of the sect of the Stoics? I will now read some of my lines over again, that they may understand that I am not ashamed of them.

“Thou, Critias, art my bosom’s joy; Charinus too, my sun-bright boy, Thy portion in my love’s the same; I burn for both with equal flame.

And fear ye not — this double fire I’ll bear, to win my soul’s desire.

Let me by both be-looked upon As by himself is each dear one; Look on me thus, and you shall be As precious as two eyes to me.”

And now I will read the other ones, which they read the last of all, as though they were of surpassing indecency.

“Garlands and song I weave for thy sweet sake; This for thyself; those let thy Genius take: Song, to extol the happy day that brings Fulfilment of my Critias’ fourteen springs; Garlands, to crown thy brows in this glad time, And deck with blooming flowers thy blooming prime.

For flowers of spring, give thy own spring to me, And shame my gifts, repaid thus bounteously; For garlands twined, with twining arms caress me; For roses, with thy roseate kisses press me; And for my song, wake thy own vocal reed, Gifts, song, and all will be surpassed indeed.”

Here, then, Maximus, you have the charge against me founded upon garlands and songs, just as though I were some wanton reveller. You also observed, that this, too, was made a charge against me, that whereas the youths are called by other names, I have given them those of Charinus and Critias. Why, upon similar grounds, they might accuse Catullus, for calling Clodia Lesbia; and just in the same way, Ticidea, because he wrote *Pærilla*, whereas the lady's name was Metella; Propertius too, who speaks of Cynthia, but means Hostia; and Tibullus, who had Plania in his thoughts, while Delia was named in his lines. For my own part, although C. Lucilius was a poet who wrote Iambic lines, I should still consider him worthy of censure, because he openly defamed the youths Gentilis and Macedo in his lines under their own names. How much more befittingly does Virgil, the poet of Mantua, act, who, just as I have done, when praising the son of his friend Pollio, in his sportive *Bucolics*, refrains from making mention of names, and calls himself Corydon, and the youth Alexis. But Æmilianus, more of a clownish churl than any of the shepherds and herdsmen of Virgil, a man who will ever be a bumpkin and a barbarian, while he flatters himself that he is of more rigid morals than your Serrani, Curii, or Fabricii avers that this kind of composition does not befit a Platonic philosopher. And will you still persist in affirming this, Æmilianus, if I shew that these lines have been composed after a precedent afforded us by Plato himself, of whose composition there are no verses in existence, except some elegiac lines on Love; for all his other poems, I suppose because they were not so elegant, he committed to the flames. Hear, then, the verses of Plato the philosopher, to the boy Aster, if indeed, at your time of life, you are still able to lean, anything in the way of literature.

Why dost thou gaze upon the sky?

Oh, that I were you spangled sphere, And every star should be
an eye To wander o'er thy beauties here.

In life thou wert my morning star; And now that death hath
stol'n thy light, Alas, thou shinest dim and far, Like the pale
beam that weeps at night."

Hear, also, the lines addressed by the same writer, Plato, to the
boys Alexis and Phædrus, where he addresses them in a joint
poem.

"Although I nothing said but this — How fair Alexis is,' all turn
and gaze on thee.

My soul, why show to dogs a bone, and then Torment them? did
we not lose Phædrus thus?"

And, again not to quote any more lines than these, I will just
repeat his last distich on Dion of Syracuse, and then make an
end.

"Thou sleep'st in honour on thy country's breast, Dion, beloved
of my extatic soul!"

But really am I not acting absurdly, even to mention these
things in court? and are you not rather acting the part of
calumniators, even to produce these matters as the grounds of
your accusation against me? just as though, forsooth, it were
any proof of a man's mode of life, that he writes wanton lines.
Have you not read Catullus, where he thus replies to the
malevolent?

"'Tis fit the worthy poet should be chaste — There's no need
that his verses should be so."

The divine Adrian, when he honoured the tomb of his friend the
poet Voconius with his verse, wrote to this effect: — "Wanton
thou wast in verse, but chaste in mind:"

a thing he never would have said, if verses somewhat sprightly were to be considered as indicative of pruriency of thought. I recollect, too, having read many verses of a similar character by the divine Adrian himself. Assert then, if you dare, Æmilianus, that it is evil to do that which the divine Adrian, our emperor and censor, has done, and has handed down to memory as having been done by him. Besides, do you suppose that Maximus is likely to censure anything that he knows I have done after the example of Plato? whose lines, which I just now quoted, are the more chaste for being undisguised, the more modest for their plainness of expression. For, to dissemble and to conceal these and all such matters, is the part of an offender, while, to discourse of them openly and without disguise, is the part of him who speaks but in jest; for so it is, that by nature the power of utterance has been given to innocence, while silence has been allotted to criminality.

But I will forbear to enlarge upon those deep and holy mysteries of the Platonic philosophy, which, while they are revealed to but few of the pious, are totally unknown to all the profane; how, that Venus is a twofold goddess, each of the pair producing a peculiar passion, and in different kinds of lovers One of them is the “Vulgar,” who is prompted by the ordinary passion of love, to stimulate not only the human feelings, but even those of cattle and wild beasts, to lust, and commit the enslaved bodies of beings thus smitten by her to immoderate and furious embraces. The other is the “Heavenly” Venus, who presides over the purest love, who cares for men alone and but few of them, and who influences her devotees by no stimulants or allurements to base desire. For the love that is engendered by her is not a wanton or lascivious love, but, on the contrary, it is serious and unadorned, and allures its votaries to virtue by its own intrinsic beauty; and if at any time she does commend a graceful form, she scrupulously protects it against all cause for reproach. Nor, indeed, is there anything else in the beauty of

the person deserving of love, beyond the fact that it recalls to the mind which took its origin in Deity, that beauty which in all its truth and purity it once beheld among the gods. Hence it is, that Afranius, with his usual eloquence, has left this line: — “Where wise men love, all others will desire.”

However, Æmilianus, if you wish to hear the truth, or if you can ever arrive at a perception of the fact, the wise man does not so much love, as recall to mind. Do pardon, then, the philosopher Plato, for his verses on love, that I may not feel myself necessitated, contrary to the maxim of Neoptolemus in Ennius, to “philosophize in detail;” or, at all events, if you decline to do so, I will readily submit, with reference to verses of this nature, to be censured in company with Plato.

And to you, Maximus, I return abundant thanks, for having so attentively listened to these appendages to my defence, which I have deemed necessary, inasmuch as they are put forward in answer to charges brought against me; and for the same reason I request that you will listen as readily and as attentively as you have hitherto done, to what I have to say, before I come to the main charges.

For next follows the lengthy and cutting attack about the looking-glass, upon which, Pudens, screaming aloud, commensurately with the atrocity of the offence, almost burst himself, crying, “a philosopher has a looking-glass! — a philosopher possesses a looking-glass!” Let me then confess that I have one, lest you should flatter yourself that you had hit me hard if I denied it; but it is by no means a necessary inference, that I am in the habit of dressing too before a looking-glass. For suppose I were in possession of a theatrical wardrobe, would you argue thence that I was in the habit of using the long train of the tragedian, the saffron-coloured dress of the comedian, or the little mantle of the mimic, as at the triennial orgies of Bacchus? You would not, I think. And on the other hand, there

is many a thing of which I am not possessed, but of which I still enjoy the use.

If, then, the possession of a thing is no proof of the use of it, or the non-possession of the non-use of it, and if not so much the possession of a looking-glass is censured by you, as the looking into it, it then necessarily follows, that you must shew when and in whose presence I looked into the glass; for, according to the present state of the case, you make it a greater offence for a philosopher to look into a looking-glass, than for one of the uninitiated to pry into the mysteries of Ceres.

Come now, even if I should confess that I have looked into it, pray what crime is it to be acquainted with one's own features, and to have their image not put up in one fixed spot, but to carry it about in a little mirror, ready to be surveyed wherever you please? Are you ignorant that there is nothing more deserving to be viewed by a man than his own features? For my part, I know that those sons are the most beloved who bear the strongest resemblance to the parents and that a man's own statue is erected at the public expense in his honour as the reward of merit, in order that he may look upon the same; else what is the use of statues and images thus framed with the varied resources of art? unless, perchance, we admit that the very same thing that is worthy of admiration when produced by artistic skill, is to be deemed culpable when presented by nature; whereas, on the contrary, the readiness and exactness of nature are even still more deserving of our admiration. For in tracing all likenesses by the hand, a considerable time is consumed in the work, and yet, after all, no resemblance is to be seen comparable with that to be viewed in a mirror; for clay is deficient in vigour, stone in colour, painting in firmness, while all are devoid of the power of motion, which brings the likeness before us in the highest degree.

For in the mirror is to be seen the image wonderfully reflected, not only with the resemblance traced out, but endowed, too, with motion, and obedient to every gesture of the person whom it represents. Then, besides, it is always of the same age with the beholder, from the earliest boyhood down to the very close of old age: so many aspects of life does it assume, of such varied conditions of the body does it partake, such numerous changes of the same features, whether influenced by joy or by grief, does it imitate. But, on the other hand, the resemblance that is moulded from clay, formed of molten brass, hewn out of stone, impressed by heat on wax, laid on a surface with paint, or represented by any other resource of human art, after no long interval of time becomes quite unlike the original; and besides, it always preserves the same rigid unmoved features, just like a corpse. To such a degree then, does the highly-wrought smoothness of its polished surface, and artificial brightness of the mirror, surpass all art in reflecting the likeness of the person.

Either, then, we are bound to adhere to the opinion of Agesilaus the Lacedaemonian, who having but a poor opinion of his own appearance, would never allow himself to be represented in painting or sculpture, or else, if the usages of all the rest of mankind appear worthy to be retained, and statues and images are not to be eschewed, what reason have you to be of opinion that each man ought to see his likeness rather in stone than in silver, rather in a picture than in a mirror? Do you think it a disgrace for a man carefully to survey his own figure? Is it not said of the philosopher Socrates, that he even advised his disciples to view themselves repeatedly in a mirror, so that he among them who was smitten with his own good looks, might be the more scrupulously careful not to disgrace the beauty of his person by bad manners; while, on the other hand, he who thought himself not so highly gifted in appearance, might carefully use his best endeavours to screen his ugliness by his

virtues. And thus did a man, who was wiser than all others, make use of the mirror for the purpose even of improving moral cultivation.

Then too, who knows not how Demosthenes, that most excellent master in the art of oratory, always got up his causes before a mirror, just as though in presence of a master? So that most excellent orator, after he had learned eloquence from the philosopher Plato, and the art of reasoning from Eubulides the logician, endeavoured to obtain the extreme perfection of the art of oratory by the assistance of the mirror.

Which, then, do you think ought to pay the greater attention to grace in the impressive delivery of his language, the wrangling rhetorician or the warning philosopher? the one who for a few moments disputes before certain judges who are chosen by lot, or the one who is continually discussing questions in the presence of all mankind; he who wrangles about the limits of fields, or he who defines the limits of good and evil? Why, if it was only for this purpose, ought not a philosopher to look into a mirror? For it is often incumbent upon him not only to view his own likeness, but to consider too the manner in which that likeness is so reflected; whether it is that, as Epicurus says, images which emanate from our bodies in a perpetual flow, being a kind of slough, as it were, us soon as they strike against any smooth and solid surface, are thrown back again, and so turned the contrary way; or whether it is that, as other philosophers argue, our rays of vision, (whether flowing from the middle of the eyes, and mingling and uniting with the external light as Plato thinks, or whether only proceeding from the eyes without any foreign admixture whatever, as Archytas supposes, or whether being broken by the tension of the atmosphere, as the Stoics imagine), when they have struck upon any body that is dense, smooth, and shining, rebound and return to the features at the same angles of incidence at which

they have struck that body, and so represent in the mirror that which they touch and behold externally to it. Does it not seem to you to be a matter of duty that philosophers should investigate all these subjects and duly enquire into them, and that they ought to be the only persons to look into mirrors of all kinds, whether with a watery surface or with a dry? For their province it is, besides what I have already mentioned, to enter upon that other enquiry, why in mirrors with a plain surface images generally appear alike, while in mirrors which are spherical and convex in surface, all objects appear diminished, and, on the other hand, in those which are concave they are magnified; at what distance and for what reason before a concave mirror the left hand takes the place of the right; in what cases it is that the image at one moment withdraws within, and at another, seems to be stepping out of the same mirror; why it is that a concave mirror, if it is held facing the sun ignites fuel placed close to it: how it happens that distinct rainbows are seen in the clouds, and that two suns exactly similar are to be beheld: besides numerous other questions of a similar nature, which are discussed in the ample volume of Archimedes the Syracusan, a man endowed far beyond all other men with a wonderful degree of skill in all geometrical subjects; though I am not quite sure but he is worthy of especial note for the fact that he consulted the mirror often and carefully. If you had only been acquainted with his book, Æmilianus, and had applied yourself not only to your fields and your clods, but to the geometrician's board and fine sand, believe me, when I say it, that although your extremely ugly features differ but very little from those of the Thyestes of tragedy, there is no doubt but you would have looked into the mirror with the object of learning something new, and would at last have given up the plough, in the intensity of your admiration of the numerous furrows and wrinkles to be seen in your own face.

Now, I should not wonder if you took it in very good part that I make mention of those most distorted features of yours, but am silent as to your manners, which are far more repulsive. The fact is, that whereas I am not naturally of a quarrelsome disposition, I was, moreover, quite willing until the last few days, to remain in ignorance whether you were a white or a black man, and even now, by Hercules! I am far from certain on that point. This arises from the fact, that while you have been buried in the obscurity of a country life, I have been busied with my studies. So, while the shade thrown around you by your ignoble condition has stood between yourself and an observer, I have never made it my object to learn the misdeeds of any person, but have always, in preference, studied how to veil my own failings rather than pry into those of others. I am just in the same position, then, with reference to you, as the man who chances to be standing in a place upon which a bright light is thrown, while another, concealed in deep shade, is looking at him. For just in a similar manner, while you can easily observe, in your obscurity, what I am doing in the open daylight and before all the world, you yourself, being concealed by your ignoble station, and shunning the light, cannot in your turn be distinguished by me.

Hence it is, that whether you have slaves to till your lands, or whether you make exchange of labour with your neighbours, turn and turn about, I neither know nor am I anxious to know; but you know very well that in one day I manumitted three slaves at Æa, and this your advocate, among other points upon which he had been instructed by you, made an objection against me; although but very shortly before, he had asserted that I had come to Æa with but a single servant as my attendant. Now I wish you would answer me this: out of one servant how could I manumit three, unless this, too, is to be set down to the account of magic? Am I to suppose that such is your blindness in lying, or such the inveteracy of that habit in you?— “Apuleius came to

Æa with a single servant,” and then, after babbling out a few words, “Apuleius manumitted three slaves at Æa in one day.” Why, not even would your story have been credible, had you said that I had come attended by three servants, and had liberated them all; and yet if I had done so, why should you look upon the possession of but three servants as a mark of poverty, rather than the manumission of three as a proof of opulence? You know not, most decidedly you know not, Æmilianus, how to bring a charge against a philosopher, when you throw in my teeth the scantiness of my retinue, a thing that I ought rather, for the sake of my own credit, to have feigned, had it been necessary so to do, inasmuch as I was well aware that not only the philosophers, of whom I profess to be a disciple, but even emperors of the Roman people have gloried in the small number of their servants.

And have not your advocates, pray, read to the same effect? How that M. Antonius, a man of consular dignity, had but eight servants in his house, and how that Carbo, who attained the highest honours, had one less? And then, again, how Manius Curius, who was rendered so illustrious by his numerous victories, for three times did he enter at the same gate in triumph, how that Manius Caius, I say, employed but two camp servants in his expeditions? So likewise the man who triumphed over the Sabines, the Samnites, and Pyrrhus, had fewer servants in number than the triumphs he enjoyed. Then, again, Marcus Cato, little expecting that others would mention it of him, has left it written in a speech of his, that when he set out as consul for Spain, he took with him from the city but three attendants, and no more; when he arrived, however, at the public villa, these seemed too few for his requirements, whereupon he ordered two youths to be purchased in the forum at the slaves’ platform, and these five he took with him to Spain. If Pudens had read all this, according to my way of thinking he would either have entirely spared this invective, or else in three

servants he would have seen cause rather to censure the multitude of a philosopher's attendants, than the scantiness of his retinue.

He has even gone so far as to reproach me with my poverty, a charge truly acceptable to a philosopher, and one to which I readily plead guilty. For Poverty has long been the handmaid of Philosophy, frugal, temperate, contented with little, eager for praise, averse from the things sought by wealth, safe in her ways, simple in her requirements, in her counsels a promoter of what is right. No one has she ever puffed up with pride, no one has she corrupted by the enjoyment of power, no one has she maddened with tyrannical ambition; for no pampering of the appetite or of the passions does she sigh, nor can she indulge it.

But it is your fosterlings of wealth who are in the habit of perpetrating these disgraceful excesses and others of a kindred nature. If you review all the greatest enormities that have been committed in the memory of mankind, you will not find a single poor man among the perpetrators: whilst, on the other hand, in the number of illustrious men, hardly any of the rich are to be found; poverty has nurtured from his very cradle every individual in whom we find anything to admire and commend. Poverty, I say, she who in former ages was the foundress of all cities, the inventress of all arts, she who is guiltless of all offence, who is lavish of all glory, who has been honoured with every praise among all nations. For this same Poverty it was that among the Greeks showed herself just in Aristides, humane in Phocion, resolute in Epaminondas, wise in Socrates, and eloquent in Homer. It was this same Poverty, too, that for the Roman people laid the very earliest foundations of their sway, and that offers sacrifice to the immortal Gods in their behalf with the ladle and the dish of clay, even to this day.

If there were now sitting as judges at this trial, C. Fabricius, Cneius Scipio, and Manius Curius, whose daughters, by reason

of their poverty, went home to their husbands portioned at the public expense, carrying with them the glories of their family and the money of the public, if Publicola, the expeller of the kings, and [Menenius] Agrippa, the reconciler of the people, the expense of whose funerals was, in consequence of their limited fortunes, defrayed by the Roman people, by contributions of the smallest coins; if Attilius Regulus, whose little field was, in consequence of a like poverty, cultivated at the public expense; if, in fine, all those ancient families, ennobled by consulships, censorships, and triumphs, could obtain a short respite, and return to light and take part in this trial, would you then have dared to reproach a philosopher for his poverty, in the presence of so many consuls distinguished for theirs?

Or is it that Claudius Maximus appears to you to be a suitable listener, while you are deriding poverty, because he happens to be the owner of an ample estate? You are mistaken, Æmilianus, and little are you acquainted with his feelings, if you form your estimate of him according to the indulgence of Fortune, and not according to the strict rules of philosophy; if you suppose that a man of such rigid morals and so long used to warfare, is not better disposed towards circumscribed moderation than fastidious opulence; if you suppose that he does not approve of wealth on the same principles that he does a garment, rather when it suits the person than when it is remarkable for its length. For wealth, too, if it is not conveniently carried, becomes an impediment to us, and trips us up, no less than a dragging garment. Indeed, in all matters which are needed for the requirements of life, every thing that steps beyond becoming moderation is superfluous, and is rather a burden to us than useful. Hence it is, that immoderate wealth, just like a large and disproportioned rudder, is more apt to sink than to guide, for in such a case people have a useless abundance, a pernicious superfluity.

I see, besides, that among the most opulent persons, those are especially commended who make no bustle, no immoderate show; who live without thrusting their wealth into public view, who manage their vast resources without ostentation and without pride, and who imitate the poor in the appearance of limited means. If, then, the rich even seek a certain appearance — a colour of poverty — in order to put on the semblance of limited means, why should those who are poorer be ashamed of it, when they have to endure a poverty not affected, but real?

I could, indeed, raise an argument with you about the very name itself, and I could show that none of us are poor who do not wish for superfluities, and who possess the things that are necessary, which, by nature, are but few indeed. For he has the most who desires the least: he who wants but little, is most likely to have as much as he wants. For this reason it is that riches are not better estimated according to lands and income than according to a man's own mind; for if a man is craving through avarice, and always greedy of gain, not even by mountains of gold will he be satisfied, but he will be always begging for something, that he may increase his store. And this is the real exposition of poverty. For all desire of acquiring, arises from the opinion which each man entertains as to what is poverty. And it matters not how great is the amount of which you are in want — Philus had not so great an estate as Lælius, Lælius as Scipio, Scipio as Crassus the Rich, nor even Crassus the Rich as he wished. So that, although he surpassed all in wealth, he himself was surpassed by his own avarice, and seemed to be rich in the eyes of all others rather than in his own. But, on the other hand, those philosophers of whom I have made mention, wishing for no more than they could obtain, and actuated by desires commensurate with their means, were rightfully and deservedly rich and opulent. For you become poor through the want of acquisition, and rich through having no wants to satisfy; inasmuch as a state of poverty is ascertained from the

manifestation of desire, opulence from the fact of being satisfied. Therefore, Æmilianus, if you wish me to be accounted poor, you must of necessity first show that I am avaricious. For if, in my mind, there is nothing wanting, I care not what external things may be wanting; for in the abundance of these consists no praise, in the want of them no blame.

Suppose, however, that it is otherwise, and that I really am poor, because Fortune has denied me riches; suppose that, as often is the case, either my guardian has made away with them, an enemy robbed me of them, or my father failed to leave me any; is a man, then, to be censured for a thing which is imputed as a fault to no one of the animals, neither the eagle, nor the bull, nor the lion? If a horse has good qualities, and is an easy trotter, and swift in his gallop, no one censures him for being in want of fodder; and will you impute it as a fault to me, not that I have said or done anything that is bad, but that I live contented with my humble means, that I have but few servants, that I eat sparingly, that I am lightly clad, and that I cater but meagrely? And yet, on the other hand, small as you think my means in all these respects, I both think them abundant, and more than sufficient, and I desire to restrict myself to still fewer necessities, being fully assured that I shall be the more happy, the more circumscribed my wants. For it is with the mind just as with the body; in a healthy state it is lightly clad, but in sickness it is wrapped in cumbrous clothing and it is a sure sign of infirmity to have many wants. It is with life just as with swimming; that man is the most expert who is the most disengaged from all encumbrances. Just the same way, amid the stormy tempests of human life, that which is light tends to our buoyancy, that which is heavy, to sink us.

For my part, I have learned that in this especially the Gods surpass mankind, that they have to satisfy no necessities. Hence it is, that him among us who has the fewest possible necessities,

I consider most strongly to resemble a God. I was very well pleased, therefore, when you said, intending it as a reproach, that my property consisted of a staff and a wallet. And I only wish that I had such perfect control over my mind, that I required nothing whatever beyond those articles, and becomingly submitted to the same equipment which Crates, throwing all riches aside, spontaneously desired. This Crates, if you will take my word for it, Æmilianus, was a man of the higher class of Thebes, rich, and ennobled in his city through his love of that very state which you impute to me as a fault. He presented his large and ample property to the people, and putting away his numerous retinue of servants, made choice of a life of solitude; his trees, numerous and fruitful as they were, he scorned in comparison with a single staff; his most elegant villas he changed for a single scrip; the praises of which he afterwards even sang in verse, on experience of its utility, adapting to the purpose those lines of Homer in which he celebrates the Isle of Crete. I will mention the words with which he commences, that you may not suppose I have only invented this for the purpose of my defence — “Scrip is a city’s name, which ‘mid dense smoke Lies fair and flourishing.”

And then follow lines so admirable, that, if you were to read them, you would be much more inclined to envy me my wallet than the hand of Pudentilla. Do you censure philosophers for their scrip and staff? By the same reasoning, you ought to censure horsemen for their trappings, foot-soldiers for their bucklers, standard-bearers for their ensigns, and those, in fine, who enjoy a triumph for their white steeds, and their robes embroidered with sprigs of palm.

These, however, are not the equipments of the Platonic sect, but they are the insignia of the class of Cynics. Still, the scrip and the staff were the same to Diogenes and to Antisthenes, as the diadem to kings, the martial cloak to generals, the rounded hat

to priests, and the crooked staff to augurs. Indeed, Diogenes the Cynic, when disputing with Alexander the Great as to who was the true king, boasted of his staff as serving him in the stead of a sceptre. Even the invincible Hercules himself — (you will, no doubt, feel a perfect contempt for those others, as a set of mendicants) — Hercules himself, I say, the traveller over the whole earth, the cleanser thereof from wild beasts, the subduer of nations, when he was travelling through the earth, and shortly before he was summoned to heaven for his virtues, had no better clothing than a single hide, although he was a God, and no other attendants than a single staff.

If, however, you think nothing at all of these instances, and have summoned me not to plead a cause, but to discourse upon my income, that you may not be in ignorance about any of in my affairs, if, indeed, you are ignorant, I admit that my father left me and my brother a little under twenty hundred thousand sesterces, and that that sum has been a little diminished by me, in consequence of prolonged travel, close study, and frequent donations. For I have given assistance to most of my friends, paid their fees to numbers of instructors, and have given dowries even to the daughters of some: nor indeed, for my own part, should I have hesitated to spend even the whole of my patrimony, in order to acquire, what to me is of far greater value, a contempt for all wealth.

You, on the other hand, Æmilianus, and men like you, unpolished and uncouth, are to be valued, no doubt, just according to what you possess; just as a barren and unproductive tree, which bears no fruit, is to be estimated in value according to the amount of timber to be found in its trunk. Nevertheless, forbear, Æmilianus, from this time forward, to throw his poverty in the teeth of any man, seeing that up to a very recent date, you used to plough for three days single-handed the one little field at Zaratha, which your father

left you, with the assistance of a solitary ass to get it ready before the usual wet season. Nor is it such a very long time since the numerous deaths of relatives came to your support, by giving you the possession of property that you little deserved; a circumstance from which, still more than from that most ugly face of yours, you have obtained the name of Charon.

And now as to my native country, and your shewing that it is situate on the confines of Numidia and of Getulia, from writings of mine, in which I confessed, when I was lecturing before that most illustrious man, Lollianus Avitus, that I was a Semi-Numidian and a Semi-Getulian; I do not see what I have to be ashamed of in that respect, any more than the elder Cyrus, because he was of mingled parentage, being a Semi-Median and a Semi-Persian. For the proper subject of enquiry is not where a man is born, but what are his manners; not in what country, but upon what principle he began life is the thing to be considered. It is with good reason allowed the gardener and the vintner to recommend vegetables and wine according to the nobleness of the soil; the wine of Thasos, for instance, and the vegetables of Phlius. For it is a fact, that those productions of the earth are much improved in flavour by the natural fertility of the district, the rain of the heavens, the mildness of the breezes, the brightness of the sun, and the richness of the soil.

But, on the other hand, while the mind of man is sojourning in the abode of the body which is foreign to it, how can any of these particulars in any way add to or subtract from its merits or its demerits? When was it not the case that in every nation various dispositions were to be found? and this, although some of them seem to be peculiarly distinguished for stupidity, others for talent. Among the Scythians, a people most remarkable for their stupidity, was born the wise Anacharsis; among the clever Athenians, the fool Melitides. Nor do I say this because I am in any way ashamed of my country, even though ours had still

been the city of Syphax: we, however, were conquered, on which we were presented as a gift of the Roman people to king Masinissa, and after that, on a new allotment of land being made among the veteran soldiers, we rose to be what we now are, a most famous colony. In this colony it was, that my father, a man of the highest rank, a duumvir, enjoyed every honour; whose position I have occupied in the same community, from the time I was admitted to the rank of decurion, having in no way degenerated from him, and, I both hope and think, enjoying the same amount of honor and of estimation.

Why do I mention these particulars? In order that you, Æmilianus, may have the fewer pretences for levelling your invectives against me in future; and that you may be the more inclined to pardon me, if, in my negligence, I did omit to make choice of that Attic Zarath of yours, to be born in. Are you not ashamed of yourselves, thus perseveringly, in the presence of such a man, to prefer such accusations as these? To bring forward matters so frivolous, and at the same time of so conflicting a nature, and yet to charge me as being guilty of them all? Have you not accused me on contradictory grounds? on those of the wallet and the staff, because of my rigidness of life; on those of the verses and the looking-glass, on account of my frivolity; of having but one servant, as being penurious; of having three freedmen, as being a spendthrift; and then, besides, of being in eloquence a Greek, by birth a barbarian. Why do you not rouse up your senses, and recollect that you are pleading your cause before Claudius Maximus, before a man of serious habits, and one engaged with the affairs of this entire province? Why not away with these vain reproaches? Why not prove, what you have accused me of, heinous crimes, lawless misdeeds, and wicked artifices? Why is your speech thus weak in arguments, thus mighty in outcry?

I now come to the charge itself of magic, that blazing brand which you lighted up against me with such immense clamour, but which has disappointed the expectation of all, dying out into I know not what old woman's stories. Have you not, Maximus, sometimes beheld a fire that has broken out amid stubble? how loud its crackling, how large its blaze, how rapid its growth, and yet, after all, how slight the fuel on which it feeds, how short-lived the flame, that leaves after it no remains! In that flame behold this accusation, which began in abuse, which has been fanned by assertions, which has failed in its proofs, and which, after your sentence shall have been pronounced, is destined to survive in not a single remnant of this false charge: a charge which has been entirely centred by Æmilianus in the proof of this one point, that I am a magician; for which reason I may be allowed to enquire of these most learned advocates of his, what a magician is.

For if, as I have read in many authors, a magician means, in the language of the Persians, the same thing that the word "priest" does in ours, what is the crime, pray, in being a magician? what is the crime in properly knowing, and understanding, and being versed in the laws of ceremonials, the solemn order of sacred rites, and religious ordinances? "What if, indeed, that is magic, which Plato calls "the service of the Gods," when he relates with what careful training the Persians bring up a youth who is destined for the throne. I recollect the very words of that divine man, and do you, Maximus, recall them to your memory with me: "When he is fourteen years of age, those persons take charge of the boy, whom they call 'the royal tutors.' These are four persons, whom they select from the highest classes of the Persians, and who are approved of for their age. One of these is the most wise, another the most just, another the most prudent, and the fourth the most valiant man. Of these, one instructs him in the magic of Zoroaster and of Oromazes, which is the service of the Gods. He also teaches him the art of governing."

Do you not hear then, you who are so rash as to accuse me of it, that magic is an art acceptable to the Gods, one that most correctly teaches us how to worship and to venerate them; one that is consequently consistent with piety, and skilled in all divine matters; one that has been ennobled from the very times of Zoroaster and of Oromazes, its inventors, as being the handmaid of the inhabitants of heaven? For among the very rudiments of the royal training this art is taught; nor is any one of the Persians rashly allowed to be a magician, any more than he is to be a king.

The same Plato, in another discourse of his, when speaking of a certain Zamolxis, a Thracian by birth, but a man skilled in the same art, has left a passage in his writings to the following effect:—" But he said, O happy man, that the soul is healed by certain incantations; and that these incantations are soothing words." And if this is the fact, what reason is there why I should not be allowed to understand either the soothing words of Zamolxis, or the priestly duties enjoined by Zoroaster? But if, after the common usage, these people imagine that a magician is properly a person who, from communication and discourse with the immortal Gods, is able, by a certain incredible power centred in his incantations, to do everything he pleases, then I greatly wonder, why they have not been afraid to accuse me, when they admit that I am possessed of such mighty powers. For you cannot take precautions against a power that is of a nature so mysterious and so divine, in the same way that other influences may be guarded against. He who summons an assassin before the judge, comes there attended by others; he who accuses a poisoner, uses every precaution in taking his food; he who charges a man with theft, keeps watch over his property.

But here, on the other hand, he who puts a magician, such as they speak of, on trial for his life, by means of what attendants,

what precautions, what guards, is he to ward off a destruction that is as unforeseen as it is inevitable? Most assuredly, by none: hence a charge of this kind is not likely to be preferred by one who believes in its truth. But these accusations, by a kind of error universally prevalent among the ignorant, are generally made against philosophers; thus, for instance, such of them as make enquiry into the pure and primary causes of matter, they look upon as irreligious, and, on that account, assert that they deny the existence of Gods; such as Anaxagoras, Leucippus, Democritus, Epicurus, and other advocates of natural causes; others, again, who, with more than ordinary curiosity, enquire into the governance of the world, and with the greatest earnestness venerate the Gods, to these, too, do the vulgar give the name of magicians; supposing that they know how to bring about those operations which they know to take place: such, for instance, were in former days, Epimenides, Orpheus, Pythagoras, and Ostanes. In like manner, the Purifications of Empedocles, the Daemon of Socrates, and the abstract “Good” of Plato, became similar objects of suspicion. Consequently, I congratulate myself, when I find myself added to this long list of great men.

Still, I am afraid that the frivolous, silly, and trifling things that they have alleged against me in support of their charge, you will consider to make against me, if only on the ground that they have been so alleged. “Why,” said he, “have you been enquiring after certain kinds of fishes?” Just as though a philosopher were not at liberty to do that, in the cause of knowledge, which an epicure may do to satisfy his gluttony. “Why has a free-born woman married you after she has passed fourteen years in a state of widowhood?” Just as though it were not a greater cause for wonderment that she remained unmarried so many years. “Why, before she was married to you, did she write I know not what thoughts of hers in a certain letter?” Just as though any one were bound to tell another the reasons for his thoughts.

“Then, besides, she, a person advanced in years, did not hesitate to marry a young man.” Why, that very fact affords a proof that there was no need of magic to prompt a woman to marry a man, a widow a bachelor, one advanced in years, her junior; and then come these other points of a similar nature—” Apuleius has got something at home which he worships in secret.” Just as though it would not rather be a ground for crimination not to have some object to worship. “A boy fell down in the presence of Apuleius.” And what if a young man, what if an old man even had fallen to the ground while I was standing by, whether he happened to be attacked by some bodily malady, or lost his balance through the slippery nature of the ground? Is it on these proofs you would convict me of magical practices — the tumbling down of a boy, the marriage of a woman, and the purchase of some fish?

For my own part, I certainly could, with entire safety to myself, be content, after saying even thus much, to come to a conclusion. Still as, in proportion to the lengthiness of the speech made for the prosecution, the water [in the clepsydra] shows that there is abundance of time left, let us, if you think proper, consider things in detail. And, for my part, all the charges that have been brought against me, whether they are true or false, I shall not deny, but will admit them, just as though they really were the fact; so that all this vast multitude, which has flocked together from every quarter to hear this trial, may fully understand, that not only nothing can be truthfully alleged against philosophers, but that nothing even can be falsely devised against them, which they would not prefer to rebut, although they could deny it, in full reliance on their innocence. First, then, I will meet their arguments, and will prove that they bear no relation whatever to the practice of magic; and, after that, I will show that, even if I had been a magician of first-rate ability, still, no cause or opportunity has existed for them to detect me in any malpractice whatever. I

will at the same time discuss more fully their unfounded envy, their shameful conduct in reading the letters of this lady, and their still more disgraceful interpretation put upon those letters, with all the circumstances of the marriage between myself and Pudentilla: and I will show that I entered into that alliance more from a sense of duty than for gain. And, really, what a mighty cause of torment and uneasiness has this marriage of ours proved to Æmilianus! Hence all that anger, and rage, and absolute frenzy, which have found a vent in the present prosecution. And if I shall succeed in proving all these points clearly and distinctly, then I shall call upon you, Claudius Maximus, and all you who are here present, to bear witness that this youth, Sicinius Pudens, my son-in-law, in whose name and by whose wish I am accused by his uncle, has but just now been removed from my charge, since his brother Pontianus, his senior in years, and his superior in character, departed this life; and I will show that he has been thus nefariously worked upon against myself and his mother, through no fault of mine; and that, having forsaken the pursuits of literature, and abandoned all studies, he is likely, if we may form a judgment from the wicked plans betrayed in this accusation, to turn out much more like his uncle Æmilianus than his brother Pontianus.

I will now proceed, as I originally purposed, to all the frantic conceptions of Æmilianus here, and I will begin with that one which you heard him state at the outset as affording the strongest grounds for suspecting me of the practice of magic — the fact, I mean, that I have purchased various kinds of fish of some fishermen. Which, now, of these circumstances is it that is to lead to a suspicion of magic? Is it the fact that fishermen have endeavoured to procure these fish for me? I suppose, then, this task ought to have been entrusted to some dyers or carpenters; and that, on the same principle, the pursuit of every art ought to have changed hands, so that the carpenter should have netted fish for me, and the fisherman have planed wood. Or, is it

that you feel satisfied that fishes must be sought for unlawful practices, because they are sought on the terms of purchase? If I had wanted them to set on table, I should have tried to get them for nothing, no doubt. Why, then, do you not accuse me in like manner on many other points? For many a time have I, for money, purchased wine, vegetables, fruit, and bread. Why, if you carry out this principle, you prescribe starvation to all purveyors of dainties. For who will dare to make purchase of them, if it is looked upon as a matter of course, that all eatables that are procured with money are wanted, not for food, but for the purposes of magic?

But if there is no suspicion whatever existing, either in consequence of the fact of fishermen being induced, for a sum of money, to do that which they are in the general habit of doing, namely, catching fish — (they have taken care, however, to summon none of these fishermen as witnesses, for the best of reasons, because none such there were) — nor yet of the fact of a price being given for a marketable commodity — (the amount of which price, however, they have taken care not to state, for fear lest, if they had named a moderate price, their story might have met with contempt, and, if an exorbitant one, it might not have been believed); if, on these points, I say, no ground for suspicion exists, then let Æmilianus answer me, on what evident grounds was he induced to make this charge of magical practices?— “You endeavoured to procure some fish,” says he. I do not wish to deny the fact. But tell me, I beg of you, is he who endeavours to procure some fish a magician? For my own part, I don’t think he is a bit the more so than if he were in search of hares, or boars, or fowl. Or is it that fishes alone are in possession of certain properties that are hidden from other people, but known to magicians? If you know what this property is, then it is clear that you yourself are a magician; but if you do not know it, then you must, of necessity, confess that you are accusing a person of a thing about which you know

nothing whatever.

Are you, then, so unversed in all literature, nay, in all the stories of the vulgar, that you cannot so much as coin these fictions of yours with some air of probability? For how should a lumpish and chilly fish, or anything that is found in the sea, be able to kindle the flames of desire? But perhaps you were induced to frame this falsehood from the circumstance that Venus is said to have arisen from the sea. Take note, if you please, Tannonius Pudens, of how much you were ignorant, when you undertook to prove the practice of magic from the procuring of fish. Had you been a reader of Virgil, you certainly would have known that other things are usually sought for such purposes. For, so far as I recollect, that poet enumerates fillets of soft wool, unctuous vervain, male frankincense, and threads of various colours; besides crackling laurel, clay that hardens, and wax that liquefies, as well as some other things, which he has described in his more serious work.

“She sprinkles round, With feign’d Avernian drops, the hallow’d ground, Culls hoary simples, found by Phœbe’s light, With brazen sickles reap’d at noon of night; Then mixes baleful juices in a bowl, And cuts the forehead of a newborn foal, Robbing the mother’s love.”

But you, libeller of the fishes, attribute far different appliances to magicians; substances not to be torn off from tender foreheads, but to be cut away from scaly backs; not to be dug up from the ground, but to be drawn up from the sea; not to be cropped with the sickle, but to be hooked up with the fisher’s barb. In fine, for the purpose of incantations, he makes mention of poisons, you of dainties, he of herbs and suckers, you of scales and bones; he culls from the meadow, you ransack the deep. I could also have quoted to you similar passages from Theocritus, others, again, from Homer, and a great number from Orpheus, and I could have repeated a multitude of lines from the Greek

comedies and tragedies, as well as from the historians, had I not already observed that you were unable to read the letter of Pudentilla, because it was written in Greek. I will therefore just dip into one more Latin poet: here are the lines, which those will easily recognise who have read Lævius: “Look for your antidote; on every side They snatch up charms of all sorts, whirling rhombs, Of magic potency; wing tails, and threads Of varied colours, and entwined; with roots And herbs and suckers; from the neighing colt Torn is the stimulant of fierce desire.”

If you had had any acquaintance with literature, you would have framed your fictions with much more probability, if you had stated that I had sought for these and other things; for perhaps, in consequence of the stories so universally spread about them, some credit would have then attached to your mention of these particulars. But when a fish is caught, what is it good for except to be cooked and served up at table? but for magic it is of no avail.

I will state to you my reasons for thinking so. Many have supposed that Pythagoras was a follower of Zoroaster, and was, like him, skilled in magic, and have informed us in their writings, that when in the vicinity of Metapontum, on the shores of his own part of Italy which he had made a kind of second Greece, § he saw a seine drawn up by certain fisher men, whereupon he purchased the chances of the haul; and that after he had paid the money, he immediately gave orders that the fish which had been caught should be released from the nets, and returned to the deep. Now, I suppose, he would not have let them go out of his hands, if he had found in them anything useful for magical purposes. For this man, so well versed in all learning, and so close an imitator of the ancients, remembered full well that Homer, a poet gifted with universal knowledge, had, in his writings, attributed all the power of drugs to the earth, and not to the sea; for when speaking of a certain

enchantress, he writes thus: “These drugs, so friendly to the joys of life, Bright Helen learned from Thone’s imperial wife, Who swayed the sceptre, where prolific Nile With various simples clothes the fatten’d soil; With wholesome herbage mix’d, the direful bane Of vegetable venom taints the plain.”

And so likewise in another passage: “Thus while he spoke, the sovereign plant he drew, Where on th’ all-bearing earth unmark’d it grew.” While, on the other hand, you will never find in his writings either that Proteus drugged his changing figure with any marine and fishy substance, or Ulysses the trench, Æolus the bag, Helen the goblet, Circe the cup, or Venus her girdle. Why, you are the only people to be found in the memory of man who, forming, as it were, a kind of hodge-podge of the productions of nature, make nothing of transferring the virtues of herbs, and roots, and suckers, and pebbles from the tops of mountains to the depths of the sea, and there sewing them up in the bellies of fishes. Hence, just as Mercury, the conveyer of incantations, Venus, the charmer of the soul, Luna, the looker-on in the night, and Trivia, the mistress of the shades, used to be summoned to the ceremonies of the magicians; so, according to your account, henceforth Neptune, in company with Salacia, and Portumnus, and the whole throng of the Nereids, will have been transferred from the surging agitations of the waves to the agitations of passionate desire.

I have now stated why, in my opinion, there is nothing in common between magicians and fishes. But now, if you think proper, let us believe, Æmilianus, that fishes really are in the habit of promoting magical influences. Does it, then, follow, as a necessary consequence, that whoever seeks for a fish is a magician? By the same rule, the person who tries to procure a light cutter is a pirate, he who looks for a crow-bar is a housebreaker, and he who seeks a sword is a cut-throat. Nothing of ever so harmless a nature can you mention, hut may

possibly be used to man's disadvantage; and nothing, of ever so pleasing a tendency, but may be taken in bad part. Yet it is not, for all that, a necessary consequence that all things should obtain an utterly bad reputation; as, for instance, that you should suppose that frankincense, and cassia, and myrrh, and such other aromatics, are only bought for the purpose of being used at funerals, seeing that they are also used in medical preparations, and in sacrifices.

But, according to this mode of reasoning about fish, you would suppose that the companions of Menelaüs, too, were magicians, inasmuch as the greatest of poets says that at the island of Pharos they banished hunger by using curved hooks. In the same class, too, you will have to place sea-gulls, dolphins, and cray-fish; and then all epicures, too, who purchase largely of fishermen; and even the fishermen themselves, who, in pursuit of their calling, seek for all kinds of fish. "Why, then," say you, "do you try to procure them?" Really I do not choose, nor do I deem it necessary, to tell you; but show me, I beg of you, if you possibly can, that I have tried to procure fish for those purposes you state. Suppose I had bought hellebore, hemlock, or the juice of poppies, and other things, the use of which, in moderation, is conducive to health, but which, when mixed or taken in large quantities, are dangerous; who could with common patience have endured it, if you had accused me of poisoning, because by means of these things a man may lose his life?

Let us see, however, what were the different kinds of fishes which were so necessary for me to possess, and so rarely to be met with, as to deserve to be sought for on the promise of a reward. Three only have they named; in one they were mistaken, while the other two they invented. They were mistaken in saying that the fish was a sea-hare, for it was quite a different kind of fish altogether; one which my servant Themiso, a person by no means ignorant of the medical art, as

you have heard from his own lips, brought to me quite unasked, for me to look at; for the fact is, that he has not even -yet managed to find a sea-hare. Still, I am ready to admit that I have been in search of other kinds besides, and that I have given a commission not only to fishermen, but to my friends also, wherever a person meets with a fish of any unusual kind, either to describe to me the form of it, or else to show it me alive, or, if he cannot do so, dead. Why I have done this, I will presently proceed to inform you.

But these accusers of mine, so extremely clever, as they fancy themselves to be, were guilty of a falsehood, when, towards the end of their charge, they invented the story that I had been in search of two marine productions with indelicate names. Those productions, Tannonius here, though he wished the genitals of both sexes to be understood, could not, all accomplished pleader as he is, think of mentioning for very bashfulness; and, at last, after much stammering and bungling, he called the fish he meant, by a vile paraphrasis, “the marine virile member.” But as for the fish called “lemmal,” finding himself unable, in any way whatever, to mention it with common decency, he betook himself to my writings, and, because he had read a passage from a book of mine, to this effect—” May cover the ‘interfeminium’ both by crossing the thighs and shading it with the hand,” in due conformity: with the gravity of his own character, he imputed it as a fault to me, that I was not ashamed to speak decently of shameful things.

Why, on the contrary, I might, with much more justice have censured him, who, whilst he publicly professes the art of eloquence, babbles shamefully even about things that are proper to be mentioned, and often, when speaking about subjects that present not the slightest difficulty, either hems and haws, or comes to a dead stop altogether. Now, tell me, if I had said nothing at all about that statue of Venus, and had

never mentioned the word “interfeminium,” pray, in what words would you have accused me on this matter, so suited alike to your stupidity and to your tongue? Can there be anything more silly, than from a similarity of names to infer a similarity of meaning in things? And yet, perhaps, you thought that you had shown great acuteness in this discovery of yours. ‘Why, then, you should have invented in your charge that I had been in search of these two marine productions, the “veretilla” and the “virginal,” for magical purposes; for I must teach you the Latin names of things, and I therefore give you their various appellations, that you may be instructed another time in what language to make your charges against me. Bear this in mind, however, that it would be as ridiculous an argument to hold, that marine productions with obscene names are required for venereal purposes, as it would be to say that sea-combs or scallops are sought for the purpose of combing the hair, or that the hawk-fish is taken for the purpose of catching birds that fly, the boar-fish for hunting boars, or sea-skulls with the object of raising the dead. I make answer, then, to this position of yours, devised, as it is, no less foolishly than absurdly, that I neither obtained these marine trifles and gimcracks at any cost whatever, nor yet gratuitously.

And this answer I give you furthermore, that you did not know what it was you were pretending I had been in search of. For these trifles which you have mentioned, are generally found lying in abundance on the sea-shores of all countries, and, without labour on the part of any one, are spontaneously thrown up by the tide, however gentle the ripple of the waves. Why, then, do you not assert that, just in the same way, paying a heavy price for them, I have employed numbers of fishermen to collect on the sea-shore streaked mussels, lumpish shells, and smooth pebbles? Why not add the claws of crabs, the shells of sea-urchins, the feelers of cuttle-fish, and bits of chips, old stumps, scraps of rope, and worm-pierced oyster-shells? Why

not, in fine, moss and sea-weed, and other things which are thrown up by the sea, which are drifted by the winds in all quarters upon the shore, cast up on the surface with the scum, tossed in the tempests to and fro, and stranded in the calm?

And not a jot the less, in the case of the matters which I have mentioned, may similar suspicions be broached, in accordance with their respective names. You affirm that things gathered from the sea, and that bear the names of the male and female organs, are efficacious in venereal matters, because of the similitude of the names; how, then, can it possibly be other than the fact, that the calculus or smooth pebble that is picked up from the same sea-shore bears some reference to the bladder, the shell known to us as “testa” to a testamentary devise, the cancer to a cancerous ulcer, the “alga,” or sea-weed, to ague. Assuredly, Claudius Maximus, you are a most forbearing man, and one endowed with the greatest humanity, for having, by Hercules! so long tolerated these arguments of theirs. For my own part, when these things were stated by them as being matters serious and unanswerable, I laughed at their folly, and was surprised at your powers of endurance. But as Æmilianus is so very anxious about my affairs, he must be made acquainted why it is that I have examined so many fishes of late, and why I did not wish to remain unacquainted with any of them. Although he is well-stricken in years, and in the decline of life, still, if he chooses, let him receive some instruction, however late, and in’ a manner posthumous. Let him read the records of the ancient philosophers, that at last he may understand, that I was not the first to make these researches; but that, long before me, my predecessors Aristotle, Theophrastus, Eudemus, Lycon, and others after the time of Plato, enquired into these matters; and let him know that they have left many books which treat of the generation of animals, their diet, their formation, and all their classifications.

It is fortunate, Maximus, that this cause is tried before you, who, learned as you are, have no doubt read the numerous volumes of Aristotle “On the Generation of Animals,”

“On the Anatomy of Animals,” “On the History of Animals besides innumerable problems of the same writer, as well as works written by others of the same sect, in which various matters of the same nature are treated of.

If it was honorable and praiseworthy in them to write on these particulars which had been investigated with such scrupulous care, why should it be disgraceful for me to try to do the same? And the more especially, when I am making it my object to write on the same subjects, both in the Greek and Latin languages, with an improved arrangement, and in more concise terms, and to ascertain what has been omitted on each point, or else to supply what is defective? Permit, if you have the leisure, some of my magical compositions to be read, in order that Æmilianus may learn that I have made more careful researches and enquiries than he imagines. Produce one of my Greek books, which perhaps my friends have brought here with them, and which treats on researches into nature, and that one, in especial, in which are set forth a great number of facts relative to the class of fishes.

In the meantime, while he is looking for it, I will just mention an instance appropriate to the present occasion. Sophocles, the poet who was the rival of Euripides, and his survivor (for he lived to a very advanced age), was accused by his own son of madness, as having, through extreme old age, fallen into a state of dotage. On this, it is said he produced his *Œdipus Coloneus*, the most excellent of his Tragedies, and which he happened just then to be writing, and having read it to the judges, he added not a word in his defence, except that he requested them, without hesitation, to pronounce him mad if the lines written by him in his old age should show him to be so. On that

occasion, I find that all the judges arose to pay all due respect to a great poet, and wondrously extolled him, both for the skill displayed in his plot, and the tragic elegance of his composition; and it all but turned out that, on the contrary, they pronounced the accuser mad.

Have you found the book? I am much obliged to you. Come now, let us make trial, whether my literary productions too will stand my friends in a court of justice? Read a few lines at the beginning, and then something on the subject of fishes. And do you, while he is reading it, take care and keep the water from dropping. [The officers read some passages from the speaker's physical works, which are now lost.] You have heard here, Maximus, much that no doubt you have read in the writings of the ancient philosophers; bear in mind, too, that these volumes were written by me on the subject of fishes alone; in them you will find it stated, which of them are produced from copulation, which are generated from mud, how often, and at what time of the year, the females and the males of each kind are bent on coupling; in what parts, and from what causes, nature has produced a difference between such of them as are viviparous, and such as are oviparous; for by those names I denote those which the Greeks call 'zootoxa' and 'ootxa'.

And, not to be at the trouble of going through all the genera of animals, I will next request a few passages to be read from my Latin compositions, which likewise treat of the same kind of knowledge, both with reference to their classifications, their food, their members, their ages, and numerous other particulars, which, necessary as they are to be known, have but little to do with a court of justice; in these, you will find, however, facts that are known to but very few, as well as some names that are even unknown by the Romans, and are not used, as far as I know, up to the present day; they are names, however, which by means of my labour and study have been so

derived from the Greek, as still to bear upon them the stamp of the current Latin coinage. If such is not the fact, then, Æmilianus, let your advocates inform us where they have read these names set forth as being Latin words. I will only touch upon aquatic animals, and no other class, except in those cases where there are differences of genera in common with them and others.

Listen now to what I am going to say. You will presently cry out, that I am repeating a string of magical terms after the Egyptian or Babylonian custom. — I could still go on, but it is not worth while to consume the day on these subjects, in order that I may have time to proceed to other points. In the meantime, as to the few that I have mentioned, run over the names I have given them in Latin. [The Latin names for the same genera of fishes are lost.]

Which, then, do you think, in case of a philosopher, not one, rude and untaught, in accordance with the impudence of the cynics, but one who bears in mind that he belongs to the school of Plato, which do you think is the more disgraceful to him, to know these matters, or to be ignorant of them? to neglect or to attend to them? To come to a perception how fully, even in these objects, the workings of providence are displayed, or merely to take your father's and mother's word as regards belief in the immortal gods?

Q. Ennius, in his work called “Hedyphagetica,” which he has written in verse, enumerates the almost numberless genera of fish which he had, no doubt curiously, examined. I remember a few of his lines, which I will repeat.

“The best of eel-pouts are at Clypea found; At Ænus sea-loche.
From Abydos come Oysters in plenty.

Mitylene sends Her scallops. From Ambracia's rocky shores We
fetch the sea-goat. Good thy sarges are, Brundusium; if they're

large, make sure and buy.

Know that Tarentum sends of boar-like fish The best. Buy sword-fish at Surrentum, buy Blue fish at Cumae. But why fail to name The scarus, equal to the brain of Jove!

In Nestor's land 'tis found, both fine and good; The black-tail, sea-thrush, whiting, and the swift Sea-shadow, the Corcyrean polypus; Aterna's skull-fish fat, the purpura, Murex, muriculus; sweet urchins, too."

Others, besides, he has celebrated in many of his lines, and has shown in what countries each of them is to be found, and whether it has the finest flavour when boiled or pickled; and yet, for all this, he is not censured by the learned. Let me not be censured then, when I set forth in the Latin tongue, under elegant and appropriate names, matters which, having been hitherto treated of in Greek, are known to but very few indeed.

As I have spoken at sufficient length on this subject, next hear me on another. Now what can they say against it, pray, if, being neither unacquainted with the medical art, nor unskilled in it, I seek for certain antidotes in fishes? for as very many such are mingled and implanted in all other objects by the bounty of nature, so too there are some, no doubt, to be found in fishes. Do you suppose that to understand the nature of antidotes, and to search for them, is the province rather of a magician, than of a physician, or a philosopher even? One who is going to use them not for his own profit, but for the purpose of benefiting others? Why, the ancient physicians were even acquainted with certain charms by way of remedy for wounds, as Homer, that most trustworthy author of all antiquity, informs us, when he represents the blood that flowed from the wound of Ulysses, as being staunched by means of a charm. Nothing that is done for the purpose of ensuring health can be criminal in itself.

“But then,” says he, “for what purpose but a bad one did you cut up the fish which your servant Themiso brought you?” As though, indeed, I did not say, a short time since, that I have written on the parts of all animals, their position, their number, and their purposes; and that I make it my study to examine and to enlarge the works written by Aristotle “On Dissections.” And, indeed, I am surprised that you should only know that one little fish has been examined by me, when I have in the same manner, on previous occasions, examined vast numbers of them, whenever they have been brought to me; especially, seeing that I do nothing in secret, but everything openly, and any one, a stranger even, may come and be present, as a spectator. Herein I act according to the customs and usages of my masters, who say, that a man of ingenuous birth and high spirit, ought, if he can, to carry his mind pourtrayed in the very front of his forehead.

Now this little fish, which you call a sea-hare, I showed to a great number of persons who were present, and I can not yet make up my mind what it shall be called, until I shall have made a more careful examination of it; for among the ancient philosophers, I find no account of the properties of this fish, although it is the rarest of all kinds, and, by Hercules! one that well deserves to be described. For this is the only fish, so far as I know, that, being without bones in other parts, has certain bones, twelve in number in the belly, connected and united one with another, much like the pastern bones of a pig in appearance. If Aristotle had been aware of this fact, he certainly never would have omitted to commit it to writing, since he has mentioned, as a remarkable fact, that there is a little heart found in the middle of the belly of the codfish, and of that fish alone.

“You cut up the fish,” says he. “Who can endure that being a crime in a philosopher, which would not have been so in a

butcher or a cook?— “You cut up the fish!” Is it because it was raw, that you censure me for so doing? If I had examined the belly, after boiling the fish, and had dug out the entrails, just as this stripling, Sicinius Pudens, has learned to do at your house, with fish bought with his own pocket-money; would you not have deemed that a fitting ground for accusing me? Put know that it is a greater crime for a philosopher to eat fishes than to examine them. Shall sooth-savers, then, be allowed to inspect the entrails, and shall a philosopher be forbidden to observe them, when he knows that he is the diviner, who gathers omens from all animals; that he is the priest of all the Gods? Do you censure in me, the very thing that Maximus and I agree in admiring in Aristotle: whose books unless you banish from the libraries, and tear them from the hands of the studious, you can bring no accusation against me.

But on this point I have almost said more than I ought. Now, only see to what an extent these people confute themselves. They say, that a woman was captivated by me through magic arts and charms derived from the sea; this, too, at a time at which they will not deny that I was far inland among the mountains of Gætulia, where may be found fishes left by Deucalion’s flood. I really congratulate myself that they were not aware that I have also read the tract of Theophrastus, “On animals that bite and are venomous,” as well as the book on antidotes written by Nicander. For in such case, they would have accused me of poisoning too, though I have only pursued these studies in imitation of Aristotle, whose works I have carefully read, my own Plato, in some measure, encouraging me thereto, when he says, that he who investigates these matters, “knows things that are godlike and immortal, if he hits upon the truth.”

Now that their fish story has been sufficiently exposed, listen to another invention of theirs, quite its equal in folly, but far more

absurd and dishonest. They knew, themselves, that their fish argument would turn out utterly futile and worthless, and ridiculous for its singularity. For who ever heard of fishes being wont to be scaled and boned for magical malpractices? On the contrary, they ought rather to have concocted something with reference to matters more universally known, and that have already obtained credit.

For this reason it is, that they have trumped up a tale quite in accordance with prescribed notions and common report, how that, — all overlookers being removed — in a secret spot, with lamp and little altar, I bewitched a certain boy by my incantations — and how that, a few witnesses being privy thereto, after he had been enchanted, he fell to the ground, and afterwards awoke in a fit of utter bewilderment. No further, however, than this, did they dare to proceed in their fiction; but still, that the story might be rendered complete, it was found necessary to add, that the same boy had, in a spirit of prophecy, foretold many events, for such, we generally hear, is the result of employing incantations. And not only by the universally received notions of the vulgar, but even by the authority of learned men, is this miraculous power of boys confirmed.

I remember, that in the works of Varro the philosopher, a man who was most intimately acquainted with all learning and knowledge, I read the following relation among others of a similar nature: — When the people of Tralles were consulting the magical art, as to what would be the result of the Mithridatic war; a boy, while looking upon the reflection of a statue of Mercury in the water, uttered a prophecy of a hundred and sixty lines, setting forth what was about to come to pass. Furthermore, that Fabius, having lost five hundred denars, came to Nigidius, to consult him; on which, certain boys, who had been inspired by him by means of charms, pointed out in what place the purse had been buried, together with some part

of the money; how the rest had been distributed, and how that even M. Cato the philosopher was in possession of one of the pieces; upon which, M. Cato confessed that he had received that very coin at the hands of an attendant of his for the contribution to Apollo.

These, and other statements, about boys being employed for magical purposes, I certainly have read in many authors; but I am doubtful whether to say that such things are possible, or to deny it. Still, I do think with Plato, that there are certain divine powers which are intermediate both in nature and locality, between the Gods and mankind, and that these powers preside over all divinations and miracles of magicians. And I am further of opinion, that the human mind, and especially the uncontaminated mind of a boy, may be lulled to sleep, and so estranged from the body, as to become oblivious of the present, being either summoned away from it by the agency of charms, or else enticed by the allurements of sweet odours; and that so, all remembrance of what is done in the body having been banished for a time, it may be restored and brought back to its original nature, which no doubt is divine and immortal, and thus, being in a kind of trance, as it were, may presage future events.

But be this as it may, if any credit is to be given to these matters, whatever boy is to prophesy, ought, so far as I can understand, to be of graceful features and of unblemished body, of quick wit, and fluent in speech; that so, either the Divine power may take up its abode in him, as in a befitting habitation, (if, indeed, it can, under any circumstances, be becomingly enclosed in the body of a boy;) or else, his mind, on being released from the body, may quickly return to its power of divination; and that such power being readily within its reach, and not blemished or impeded by obliviousness, may be the more easily resumed. For, as Pythagoras used to say, "It is not out of every log of wood

that a Mercury can be carved.”

If, then, such is the fact, mention the name of this boy, of sound mind, good health, quick wits, and singular beauty, whom I have thought proper to initiate in these arts, through my incantations. As for this Thallus, whom you have named, he stands more in need of a physician than of a magician. For he, poor creature! is so affected with epilepsy, that frequently, as many as three or four times in a day, he falls to the ground without any incantations whatever, and injures all his limbs with the blows so received: he has a face, too, full of ulcers; his head, both before and behind, is covered all over with bruises; his sight is dim, his nostrils are expanded, and he is quite shaky in the legs. He would be the greatest magician of all, in whose presence Thallus could stand up for any length of time together; so frequently does he stagger and fall down under the influence of his disease, just as though he were fast asleep. And yet you have thought proper to assert, that he has been made to fall down through my incantations, because he happened to fall on one occasion when I was present. Many of his fellow-servants are here, whom you gave notice to produce. They can tell you, all of them, why they shun the society of Thallus; why it is that no one ventures to eat with him from the same dish, to drink with him from the same cup.

But why speak of the servants? Deny it yourselves, if you dare, that Thallus, long, long before I came to Oëa, was in the habit of falling down when suffering from attacks of this disease, and had been repeatedly in the hands of the physicians. Can his fellow-servants, who are in your own service, deny that? I will confess myself guilty on all the charges, if he has not, this long time past, been banished to a farm at a great distance in the country, lest he might infect the whole household. That this is the fact, not even they themselves can deny. This, too, has been the reason, why he could not be produced by us to-day. For, just

in accordance with the precipitate and hurried manner in which this accusation was preferred, it was only the day before yesterday, that Æmilianus gave us notice to produce our fifteen servants before you. The fourteen who were in the city are present. Thallus, as I mentioned, is the only one that has been sent away into the country, almost a hundred miles out of our sight. Thallus is the only one absent; but still we have sent a person, post haste, for the purpose of bringing him hither. Enquire, Maximus, of these fourteen servants, whom we produce, where the boy Thallus is, and in what state of health; enquire of the servants of my accusers. They will not deny the fact, that this most unsightly lad has a body rotten and diseased, that he is liable to falling fits, is uncouth, and a mere clod.

A handsome youth, indeed, you have chosen, for any person to employ in the sacred rites, to touch his head, [in initiating him], to clothe him with a pure garment, and to expect him to give responses! By Hercules! I only wish he had been here, I would have handed him over to you, Æmilianus, to take hold of him, and question him yourself. Why, in the very middle of your examination of him, here, in this same spot, and before the very tribunal, he would have fixed his staring eyes upon you, slobbered and spit in your face, clenched his hands, dropped his head, and, at last, fallen right upon your breast. The fourteen servants, whom you demanded, I have brought; why don't you make use of them for examination? One lad, and that one a poor epileptic creature, you ask for, when you know, as well as I do, that he has long since left this place. How can there be a more manifest calumny than this? At your demand, fourteen servants are here — of them you take no notice — one young boy is absent, about him you attack me.

After all, what is it you want? Suppose Thallus to be present, do you wish to prove that in my presence he fell to the ground? I am quite ready to admit it. Ho you say that this was effected

through incantations? About that, the lad knows nothing at all: I will prove that such was not the fact. How that the lad was suffering from epilepsy, not even you yourself will dare to deny. Why, then, ought his falling down to be attributed to incantations rather than to disease? Could it not possibly happen that he should be seized with an attack in my presence, just as he has often been seized on other occasions, while many other persons were present? If I had considered it a matter of great importance to make an epileptic person fall down, what necessity was there for me to use incantations, when the stone called “agate,” after being subjected to the action of fire, as I read in the writers on Physics, readily and easily tests the presence of this malady? It is by means of the smell of this, too, that trial is usually made in the slave-markets of the soundness or unsoundness of the slaves. Then besides, the wheel, when whirled round by the potter, readily affects with vertigo a person suffering from this malady, so much does the sight of the rotatory motion affect his debilitated spirits; so that a potter is much better able than a magician to cause the epileptic to fall prostrate.

You have asked, and for no purpose, that I should produce the servants; I ask, and not for no purpose, that you will mention by name the witnesses who were present at these nefarious rites, when I thus brought to the ground the already tottering Thallus. Only one young lad, after all, do you name, this Sieinius Pudens here, in whose name you accuse me; he declares that he was present; but even if his boyhood did not in the slightest degree detract from his credibility with the court, still his position as accuser would impair the value of his testimony. It would have been much easier, Æmilianus, and would have carried much greater weight, if you had said you yourself were present, and that in consequence of these rites you were first attacked with insanity, rather than entrust all this business, as though it were a mere joke, to boys. A boy fell down, — a boy

saw him fall down, — and may not some boy have acted the enchanter too? Tannonius Pudens here, craftily enough, when he perceived that this lying fiction also fell cold and harmless, and that it was ail but hissed outright, asserted that he would produce some other boys who had also been enchanted by me, that thus at least, by raising your expectations, he might lull the suspicions of some among you; and then he passed on to another head of his argument.

Now, although I might very well have taken no notice of this, still, as I have challenged him to proof on all other points, so I volunteer to do on this. For I long for these boys to be produced, who, I hear, have been encouraged to give false evidence against me, through hopes held out to them that they shall thereby gain their liberty. However, no more do I say than this: Let them produce them; I demand, Tannonius Pudens, and insist that you will fulfil the promise you have made. Produce these boys, in whom you have put such confidence; inform us what are their names; a portion of the time that has been allotted for my own speech I give you leave to employ for the purpose. Tell us, I say, Tannonius — why are you silent? why do you hesitate? why cast your eyes on the ground? If he does not know what it is he has said, or if he has forgotten the names, then do you, Æmilianus, step this way; say what were the instructions you gave to your counsel; bring forward the boys; what makes you turn so pale? why thus silent? Is this the way to bring an accusation of such magnitude? to make a laughing-stock of Claudius Maximus, a man of such exalted station, and to persecute me with your calumnious charges?

But if, perchance, your advocate did make a slip, and if you have no such boys to produce, at all events employ, for some purpose or other, the fourteen servants whom I have brought here; or else why was it that you required such a large household to be brought into court? Accusing me of magic, you have given me

notice to produce fifteen servants. If you had accused me of acts of violence, how many servants, pray, would you have demanded? Is it, then, that the fifteen servants know all about it, and yet it is a -secret? or is it no secret at all, and yet an affair of magic? One of these two things you must necessarily confess; either that what I did was not unlawful, since I did not fear to allow so many persons to be privy to it, or else that if it was unlawful, so many witnesses ought not to have been privy to it. This magic, from all I can learn, is a thing denounced by the laws, and from the remotest times forbidden by the Twelve Tables, in consequence of the incredible blasting of standing corn by means of incantations. Consequently, it is a thing no less secret in its practices than foul and abominable; it is generally carried on by night, hidden in deep gloom, removed from all observation, and effected by whispered spells: a process at which few, not to say slaves, but even free men, are allowed to be present.

Do you want to make out that fifteen servants were present as spectators? Was it a wedding, then, or some other ceremonial, or an afternoon carousal? "Fifteen servants are here taking part in these magic rites, just like so many Quinde-cemvirs, elected for the performance of sacred duties. But to what end should I have employed so large a number, if the privacy of but one is far more than is requisite? Fifteen free men! why, that makes a whole borough, That amount of servants! 'tis a whole household; the same number, if placed in chains, would fill a whole gaol; or was it that such a multitude as this was necessary to hold the victims for sacrifice? But all the while you have mentioned no victims except hens.

Or were they required to count the grains of frankincense? or to knock down Thallus?

You stated, besides, that a free-born woman had been brought to my house, afflicted with the same malady as Thallus; that I

promised to cure her, and that she, too, fell to the ground enchanted by me. So far as I can see, you have come here to charge me with being a wrestler, and not a magician, seeing that you assert in this fashion that all who have come near me have been levelled with the ground. However, upon being questioned by you, Maximus, Themiso, the doctor, by whom the woman was brought for me to examine, denied that anything whatever happened to her, except that I put the question, whether there was a ringing in her ears, and if so, in which of them in the greatest degree? upon which she made answer, that her right ear was very much disturbed by it, and immediately after took her departure.

And here, Maximus, although at the present moment I am careful to refrain from praising you, that I may not appear to flatter you with a view to this trial, still I cannot forbear from praising your acuteness in cross-examination. For just now, when these matters were discussed, and they asserted that the woman was enchanted, whilst the doctor, who was present, denied it, you very sagaciously enquired, what I was to gain by thus bewitching her; on which they answered, that the woman should fall to the ground. "Well, what then?" you asked, "did she die?" They said no. "How then," say you, "what advantage would it have been to Apuleius if she fell?" For to this effect did you fairly and perseveringly put the question to them as many as three several times, because you well knew that the motives for all actions ought most carefully to be enquired into, and that often, when facts are admitted, the causes of them become subjects for enquiry; and you were aware that for this very reason the advocates of persons engaged in suits at law have the name given to them of "causidici," because it is their province to explain the causes for which each thing has been done. But, on the other hand, to deny that a thing has been done is an easy matter, and needs the services of no advocate whatever; while to show that it has been done rightfully or wrongfully is a most

arduous and difficult task. It is useless, then, to enquire whether a thing has been done, which has had no evil cause to prompt its being done. Hence it is, that he who is accused before a conscientious judge of having done a thing, is free from all fears of enquiry, if he has had no reason for doing what was wrong.

How, since they have neither proved that the woman was enchanted, nor yet that she was thrown to the ground, and as I do not deny that, at the request of a medical man, she was examined by me, I will tell you, Maximus, why I did make the enquiry about the ringing in the ears; and I shall do so, not so much for the sake of exculpating myself in this affair, which you have already pronounced to have nothing in it of faultiness or criminality, as because I would not wish to be silent on any matter that is suited to your ears and your learning. I will state it, then, as succinctly as possible, seeing that you are to be put in mind only, not instructed by me.

The philosopher Plato, in that most celebrated dialogue of his, entitled "Timæus," after having, with a sort of celestial eloquence, explained the structure of the entire universe, most ingeniously discussed the threefold powers of our mind, and aptly shown why our several parts were formed by the Divine Providence, proceeds to range the causes of all maladies under three heads. The first cause he attributes to the elements of our bodies, in cases where the qualities of those elements, being the moist and the cold, and the two qualities that are their opposites, do not agree the one with the other; and this takes place when any one of them has exceeded its limits, or has shifted from its proper locality. The next cause of maladies exists in the corruption of those parts which are formed by a coalition of simple elements, united so as to form a single substance; these are, for instance, blood, flesh, bones, and marrow; and then those parts, which are formed from a mixture of these several substances. In the third place, there are in the

body collections of various coloured bile, and of restless and flatulent wind, and gross humours, all which are most frequent causes of diseases.

In the number of these last is especially to be found the primary cause of the falling-sickness, about which I purposed to speak. For the flesh, through a noxious degree of heat, sometimes deliquesces into a moist state, that is, dense and cloggy, and a certain flatulency rises therefrom, in consequence of the heat of the compressed air, and a corrupt matter of whitish and frothy appearance flows from it. Now, this corrupt matter, if it can find a vent to ooze forth from the body, is ejected with more unseemliness than danger. For it marks the exterior of the skin with leprosy, and variegate it with all kinds of spots; the person, however, to whom this happens is never afterwards attacked by epilepsy; and thus it is that a most afflicting malady of the mind is compensated by a slight disfigurement of the body.

But, on the other hand, if these pernicious secretions are held in check, and become united with the black bile, these, raging at large, penetrate through all the vessels; and when they have done this, making their way towards the crown of the head, they mingle their destructive humours with the brain; and instantly affect that regal portion of the understanding which, all-important as it is in the reasoning faculties, has fixed its seat in the head of man as its citadel and its palace. For its divers passages and its paths that lead to wisdom, these humours clog up and overwhelm; this, however, they do with less work during the hours of sleep, as at such times the patient, being filled with food and drink, only suffers from a slight attack of impeded respiration, which is a symptom of epilepsy. But if the humours increase to such a degree as even to attack the head while the patient is awake, then, a cloud suddenly comes across the spirit, he becomes torpid, the breath ceases, and the body falls to the

ground, like that of a dead person.

This our forefathers styled, not only the “major” and the “comitial,” but also the “divine” disease; just as the Greeks, with good reason, have styled it ‘iera nosos’, inasmuch as it attacks especially the reasoning parts of the mind, which are by far its most holy portion. You see, then, Maximus, what is the theory of Plato, which I have explained as perspicuously as I could, considering the time allowed me; and as I believe with him, that the Divine disease [or epilepsy] proceeds from these bad humours mounting to the head, it is clear I had good reason to make the enquiry, did this woman’s head ache, was her neck torpid and stiff, and was there a throbbing in her temples, and a tingling in her ears? And, what is still more, inasmuch as she admitted that she had a repeated ringing in the right ear, that was a clear sign that the malady had taken a deep root. For as the right side of the body is the strongest, the less hope of recovery is there left, when even that gives way to disease. Aristotle has also left it written in his Problems, that, in the case especially of those who are epileptic, and are attacked by the disease on the right side, the cure will be most difficult. It would take a long time if I were to repeat the opinions stated by Theophrastus also with reference to the same malady; but there is in existence an excellent book of his, written on the subject of epilepsy. Persons afflicted with this disease, are told in another book which he has written “On animals that envy,” that the sloughs of newts (which those animals, like the rest of the serpent tribe, cast aside at stated periods, like a sort of old age,) are very useful as a remedy; but if you do not quickly take them away, these animals will instantly turn round and devour them, whether it is that they act through a malignant presage [of their possible usefulness], or through a natural appetite.

These matters I have mentioned, and have been careful to name both the points discussed and the books written by these

celebrated philosophers, while, at the same time, I have not thought of giving any of the physicians or poets, in order that these people may cease to wonder, if philosophers, by the aid of those studies which are peculiar to themselves, gain some knowledge of the causes and remedies of diseases. Admitted, then, that an afflicted woman was brought to me to examine for the purpose of effecting a cure, and that, by the; confession of the medical man who brought her, I acted rightly, then I think, they must either come to the conclusion that it is the part of a magician, and of a man guilty of malpractices, to heal diseases, or else, if they do not dare to make such an assertion, they must confess that, in the case of the boy and the woman afflicted with epilepsy, they have uttered frivolous and abortive calumnies.

Nay, if you wish to hear the truth, Æmilianus, you yourself are much afflicted with the falling-sickness, having fallen flat so often in attempts to calumniate me. For it is not a more grievous thing to fail in body than in spirit, to be found giving way rather in the feet than in the mind, and to be defiled with spittle in a private chamber, than to be execrated in this most illustrious assembly. However, you fancy, perhaps, that you are sane in mind, because you are not confined at home, but follow your mad fit just where it may chance to lead you. Still, if you compare your own madness with that of Thallus, you will find that there is no such great difference between them, except that Thallus attacks himself, while you go so far as to attack others. Besides, Thallus distorts his eyes, you the truth; Thallus screws his hands, you your advocates; Thallus falls flat on the pavement, you before the tribunal. In fine, whatever he does, he does through infirmity; he offends in ignorance, while you, wretched man, knowingly and advisedly, are guilty.

So extreme is the violence of the disease that holds its sway over you, that you accuse me of what is false as though it were the truth; a thing that was never done, you charge me with

doing; one whom you know, beyond a doubt, to be innocent, you still accuse as though he were guilty. I have omitted, besides, to say that there are some things of which you confess yourself ignorant, and yet persist in charging me with, just as though you were fully acquainted with them. For you assert that I kept something wrapped up in a napkin in the same room with the Lares of Pontianus. What these things were, thus wrapped up, and what was their nature, you confess you know not, and you admit there is no one who has seen them; and yet, at the same time, you assert that they were appliances of magic.

Let no one flatter you, Æmilianus. This is no proof of your skill in framing an accusation, nor of your effrontery even; so don't you suppose that it is. What is it then? It is the unhappy frenzy of an embittered spirit, the wretched insanity of a soured old age. For, almost in these very words did you plead before a judge so distinguished for his gravity and his shrewdness: "Apuleius kept certain articles wrapped up in a linen cloth in the same room with the Lares of Pontianus. As I do not know what these articles were, I assert that they were for magical purposes; believe me, therefore, in what I assert, because I am asserting what I know nothing about." An excellent argument, and one that so convincingly proves my guilt!—"Such and such it was, because I know not what it was." You are the only person that has ever yet been found, Æmilianus, to know even those very things that you do not know. To such a degree as this have you been exalted above all in folly! While, on the one hand, the ablest and most sagacious of philosophers have asserted that we must not so much as place confidence in those things even which we see; you, on the other hand, go so far as to assert the existence of things that you have never so much as seen or heard of. If Pontianus were alive, and you were to ask him what was within that cover, he would tell you he did not know. The freed man, too, who has kept the keys of that place up to this very day, and is one of your supporters, declares that he never

looked into it, although, as being the keeper of the books which were put away there, he opened and shut the place nearly every day. Many a time has he gone into the room with me, and much more frequently alone, and has seen a linen cloth lying upon the table, without any seal, without any fastening upon it. And why so? Magical implements were concealed in it — that was the reason why I kept them in such a careless manner. Still more, I needlessly exposed them for him to pry into and examine, and even, if he had thought fit, to take them away; I entrusted them to the care of another person, I left them at the mercy of another.

“What, then, is it that you now want to be believed? That a thing about which Pontianus, who lived on terms of inseparable intimacy with me, knew nothing at all, you are fully acquainted with, you, whom, before I met you in this court of justice, I never in my life set eyes upon? Or is it that, when a freedman was there at all times and seasons, and had every opportunity of examining, you, who never went there, saw a thing which that same freedman never saw? In short, do you wish it to be believed that a thing which you never saw, is just what you affirm it to have been? But, you blockhead, if you, this very day, had gained possession of that same napkin, whatever you might have produced therefrom, I could have denied that it was ever employed for magical purposes.

However, I give you full permission; invent whatever you please, plan, devise anything that may possibly appear applicable to magical practices, I could still dispute the question with you; I could either say that it had been surreptitiously placed there, or that it was employed as a remedy, or that it had been entrusted to me for the performance of sacred rites, or had been recommended to me in a dream. There are a thousand other means by which I could, after the most ordinary methods in use, truthfully rebut your assertions. Now, this is what you

require, that the very thing which, if made known and discovered, would not prejudice me before an upright judge, may, while it remains undiscovered and unknown, lead to my condemnation, upon an idle suspicion. I don't know whether you will again say, as usual with you,— “What was it, then, that you kept covered up with a linen cloth, and so carefully put away in the same room with the Lares?” Is it so, Æmilianus? You make your accusations in such a way that you gain all your information from the person accused, while you yourself bring forward nothing that is known for certain. “For what purpose did you try to procure the fishes?”

“Why did you examine the sick woman?”

“What was it you kept in the napkin?” Which of the two have you come here to do, to accuse or to interrogate me? If to accuse me, prove yourself the assertions you make; if to interrogate me, do not prejudice the fact, since the very reason that makes it necessary for you to interrogate me, is that you are ignorant of the fact.

But really, according to this mode of proceeding, all men will have accusations brought against them, if there is to be no necessity for one who makes a charge against another to prove his case, but, on the contrary, he may enjoy every possible facility for making enquiries. For in such case, charges of magical practices may be made against any body, and every thing he may chance to have done, will be brought forward against him. “You placed your vow in writing upon the thigh of some statue, therefore you are a magician; if not, why did you so place it?”

“You silently put up prayers to the Gods in a temple, therefore you are a magician, or else why did you so express your wishes?” On the other hand, “You omitted to pray in the temple, therefore you are a magician, else why did you not

address your supplications to the Gods?" Just the same may happen, whether you present some donation, offer up a sacrifice, or take home some of the sacred herbs.

The day would not suffice for me, if I were to attempt to enumerate all the matters on which a calumnious accuser will thus call for an explanation. In especial, what is put away in one's house, what is placed under seal, what is shut up, and kept there; all these things, by the same line of reasoning, will be said to be of a magical nature, or else will have to be transferred from the store-room to the forum, and into a court of justice. For my own part, Maximus, I could discuss at very considerable length the value to be set upon such points as these, what their character is, how large a field for calumnious charges is opened by this course adopted by Æmilianus, and what an enormous amount of trouble and vexation has been caused to innocent persons by this one single napkin. I will do, however, as I originally purposed, even where there is no necessity that I should do so; I will give him the benefit of an admission, and, as I have been interrogated by Æmilianus, I will give him an answer.

You ask, Æmilianus, what it was I had in the napkin. Now, although I might utterly deny that any napkin belonging to me was ever placed in the library of Pontianus, I will grant, by all means, that such was the case, as it still remains in my power to say, that nothing whatever was wrapped up in that napkin. And if I do say so, by the testimony of no one, by no proof can I be refuted. For there is not a person who ever touched it, and only a single freed man, according to your own story, who saw it. Still I tell you, so far as I am concerned, I am quite ready to admit that it was stuffed full of something; think so, if you like, just as in days of yore the companions of Ulysses fancied that they had found a treasure when they fingered the leather bag that was blown out with the winds. Would you like me to tell

you what the things were, thus wrapped up in the napkin which I entrusted to the charge of the Lares of Pontianus? You shall be indulged. I have been initiated into most of the sacred rites of Greece. Certain of their tokens and insignia, which have been given to me by the priests, I carefully keep as reminiscences. Of nothing unusual, nothing unheard-of am I speaking. You, too, brother members of the college of that single God, father Bacchus, who are here present, you, I say, know full well what it is you keep so carefully treasured up at home, and what it is that, after excluding the uninitiated, you venerate in silence. Well, then, I, as I was saying, in my eagerness for truth and in performance of my duty towards the Gods, have become acquainted with manifold rites, usages, and ceremonials. I do not invent this to suit the present occasion; for nearly three years since, when, at the very earliest period after my arrival at Oëa, I was delivering a public lecture on the majestic attributes of Æsculapius, I mentioned the very same thing with reference to myself, and reckoned up the number of sacred mysteries with which I was acquainted. That lecture of mine is very well known; every body reads it; it is in the hands of all; being recommended to the religious of Oëa, not so much by my own eloquence, as by its mention of Æsculapius. Repeat some of you, if there are any who happen to remember it, the beginning of that discourse. [It is repeated.] Do you hear, Maximus, how many are able to quote it? Nay, more, only look; the book is handed to me. I will request that those same passages be read; for judging by the very kind expression of your countenance, I am fully assured that you will not object to hear them read. [The passages so read are wanting.] Can it, then, seem wonderful to any man who has any thought or regard whatever for religion, that a person who has been initiated into so many sacred mysteries of the Gods, keeps in his house certain tokens connected with those sacred rites, and that he wraps them up in woven linen, a substance that forms the purest of all coverings

for things of a holy nature?

For wool, being an excrement of a most inert body, and taken from an animal's back, has ever been held to be an impure covering, in conformity with the dicta of Orpheus and Pythagoras; while, on the other hand, flax, the purest production of the earth, and one that springs up from the ground among the choicest of its fruits, is employed by the most holy of the priests of the Ægyptians, not only for their dress, but also for the purpose of covering things of a sacred nature. Still, I am quite aware that there are some, and Æmilianus here especially, who make a joke of sacred matters, and laugh them to scorn. For, from what I can learn from some of the people of Oëa, who are acquainted with him, up to this present advanced period of life, he has offered his supplications to no deity, crossed the threshold of no temple. If he chances to pass by any holy place, he holds it an abomination to move his hand to his lips for the purpose of shewing veneration. Not even to the Gods of husbandry, who feed him and clothe him, does this man offer any first-fruits of his crops, or his vines, or his flocks: no shrine is there built on his estate, no consecrated spot or grove is there to be found. But why do I talk about groves and shrines? Those who have been there, declare that they never so much as saw a single anointed stone within the boundaries of his estate, or one branch crowned with garlands. Hence it is, that two nicknames have been given him, Charon, as I have mentioned already, in consequence of the unseemliness of his features and his disposition; and another, which he likes better, and which is given him on account of his contempt for the Gods, namely, that of Mezentius. For this reason, I can very easily understand that these initiations into so many sacred rites will appear to him to be mere nonsense; and perhaps, in his contempt for things divine, he will persuade himself not to believe me, when I say that I most religiously preserve these tokens and reminiscences of so many sacred ceremonials.

But what Mezentius may choose to think of me, not one snap of a finger do I care. To the rest, however, who are around me, in my loudest voice I give notice, that if any one happens to be present who has been initiated into the same rites as myself, if he will give me the sign, he shall then be at liberty to hear what it is I keep with such care. For, so far as I am concerned, by no peril will I ever be compelled to disclose to the uninitiated the things that I have had entrusted to me on condition of silence. I have now then, Maximus, to my thinking, fully satisfied the mind of any man, even the most unreasonable; and, so far as the napkin is concerned, have wiped away every stain of suspicion; and I believe I may now pass on in perfect security from the suspicions of Æmilianus to the testimony of Crassus, which, next to the preceding matters, they adduced as of the greatest importance.

You heard read in the information, the testimony of a certain glutton and desperate debauchee, Junius Crassus by name, who stated that I had been in the habit of performing sacred rites at night in his house, together with my friend Appius Quintianus, who had paid a sum for the hire of that house. This Crassus affirms, too, that although at that very time he was at Alexandria, he still knows this for a fact, from the smoke left by the torches and from the feathers of birds which were found there. I suppose he means to say, that while he was celebrating his orgies at Alexandria, (for this, you must know, is that same Crassus who delights to creep at midday into his dens of brothels,) he caught, amid the steams of the kitchen, the feathers that had been wafted thither all the way from his abode, and that he recognized the smoke of his own house, as it curled afar from his paternal roof. If he really did manage to see it with his eyes, he certainly is blessed with a power of sight that far transcends the wishes and aspirations of Ulysses himself. Ulysses, for many a year, looked out in the distance from the sea-shore, and longed in vain to espy the smoke as it ascended

from his native land. Crassus, in the few months during which he was absent, without the slightest trouble, espied that smoke while seated in a wineshop.

And if, too, he managed to snuff up with his nostrils the fumes that arose from his house, why, then, he outdoes even dogs and vultures in the keenness of his scent. For by what dog, by what vulture, under the Alexandrian sky, can anything possibly be smelt all the way from the confines of Oëa? NO doubt this Crassus is an inordinate glutton, and far from unskilled in all kinds of fumes; but really, considering his fondness for drinking, the only thing for which he has become distinguished, it would be much more easy for the fumes of wine, than the smell of smoke to reach him at Alexandria. Even he himself was sensible that this would not be easily believed. For the report is, that before the second hour of the day, with an empty stomach, and before he had taken a drop of wine, he made sale of this same testimony of his; upon which, he wrote down that he had made this discovery in the following manner.

Upon his return from Alexandria, he straightway repaired to his own house, which Quintianus had just quitted: in the vestibule of it he found a great many feathers of birds, and perceived that the walls were black with soot. On enquiring of his servant, whom he had left at Oëa, what was the reason of this, the servant informed him of the nocturnal rites celebrated by me and Quintianus. How very cleverly invented! What a very likely story, that, if I had wanted to do anything of that kind, I should not have done it at my own house in preference. That Quintianus here, who is now standing by me, (whose name, in consideration of the strictest ties of friendship which exist between him and me, of his extraordinary learning and his most consummate eloquence, I here mention for the purpose of honouring and extolling him,) that this same Quintianus, I say, if he was going to have any fowls for his dinner, or if, as they

say, he required them to be killed for magical purposes, could find no servant to pluck the feathers and throw them away! Moreover, that the smoke was in such volumes, that it quite blackened the walls! and that Quintianus was willing to put up with this dirty appearance in his room, all the time that he was residing there!

You make no answer to this, Æmilianus; it is not likely you would; but perhaps Crassus, on his return, did not direct his steps to the chamber, but, consistently with his usual practice, made straight for the kitchen-stove. But on what ground did the servant of Crassus form this suspicion of his, that the walls got blackened in the night time precisely? or why, that it was smoke with which they were discoloured? It is, I suppose, because smoke that escapes by night, is blacker than the smoke of the daytime, and so differs from it in its effect! And then, why should a servant, so full of his suspicions, and so notable a person, allow Quintianus to leave, without having the house cleaned out? Why did those feathers, just like so many lumps of lead, lie there all that time, even till Crassus had returned? Ought not Crassus to scold his servant for this? No, he has preferred to trump up this falsehood about the soot and the feathers, because, even in giving his evidence, he cannot tear himself from the kitchen.

And then, why did you read his evidence from the record? Where is Crassus himself? Has he got tired of his house, and returned to Alexandria? Is he busily engaged in cleaning flown those walls of his? Or, what is much more likely, is that gormandizer at this moment laid up with a fit of indigestion? For I, my own self, Æmilianus, saw him no longer ago than yesterday, here at Sabrata, publicly enough, hiccupping away to you, in the middle of the market-place. Make enquiry then, Maximus, of your clerks of court, although, no doubt, he is better known to cookshop-keepers than to clerks of court; still,

ask them, I say, whether they have seen here Junius Crassus, a native of Oëa; they will not say no. Therefore, let Æmilianus bring before us this most worthy youth, in whose testimony he places such confidence. You see what time of the day it is. I am ready to affirm, that long before this hour, Crassus has been snoring away dead drunk, or else, that he is at this moment taking his second bath, and sweating off his wine, that he may be ready for a second drinking bout after dinner. This fellow, though he is quite close at hand, speaks through the record: not but that he is so utterly void of shame, that if even he were in your presence, he would lie, without changing colour in the slightest; but very probably, from his drunken habits, he has not been able to exercise even such a slight degree of control over himself, as to keep sober and await this hour. Or else it is, that Æmilianus has done this designedly, in order that he might not have to place him before such scrutinizing eyes as yours; his object being that you might not, from his appearance, form a bad opinion of the brute, with his lank jaws, and his sinister aspect; when you saw his head despoiled of beard and hair, though he is still a young man, his eyes distilling rheum, his eyelids swollen, his lips bedewed with slaver, his voice quite cracked, his hands shaking, as he grins and belches by turns. All his patrimony he has long ago devoured, and nothing of his family possessions is there now left, except one solitary house, for the purpose of affording him an opportunity of making sale of his false evidence; and which he has never let at a more remunerating rate, than in affording this bit of testimony. For this drunken fabrication of his, he has bartered to Æmilianus for three thousand pieces of money, a fact of which there is not a person in Oëa who is ignorant. Before the bargain was concluded, we all knew of it, and by giving timely information, I might have put a stop to it, if I had not been well aware that so silly a lie would do far more harm to Æmilianus, who was making purchase of it to no purpose, than to myself, who could

well afford to hold it in contempt. I was willing that Æmilianus should have to suffer a loss, and that Crassus should be exposed for the disgraceful character of his evidence.

Why, it is no longer ago than the day before yesterday, that, without the slightest attempt at concealment, the transaction was concluded, at the house of one Rufinus, of whom I shall just now have to make mention, the said Rufinus and Calpurnianus acting as the go-betweens and promoters of the transaction. And this part Rufinus was the more ready to act, because he felt very sure that Crassus would bring by no means the smallest part of his bribe to his own wife, at whose intrigues he purposely connives. I perceived you too, Maximus, the very moment that the information was produced, showing, by your looks, that you regarded the whole matter with contempt; for, with your usual wisdom, you suspected their plot, and saw that it was a conspiracy got up against me. And yet, after all, possessed though they are of unbridled audacity and insolent effrontery, not even they have dared to read through the evidence of Crassus, for they saw that it stunk in your nostrils, nor have they ventured to place any reliance upon it.

Now this is why I have mentioned these things, not that with you for my judge, I was frightened by their feathers and their smoke stains, but that Crassus might not escape unpunished for his offence in selling smoke to a country clown like Æmilianus.

Then there was a charge made by them, when they read the letters of Pudentilla. It was about a certain little image, which they say I ordered to be secretly made, of the most costly wood, for purposes of magic. They assert, too, that, although it was the figure of a skeleton, something quite shocking and horrible, I was in the habit of paying the greatest veneration to it, and calling it by the Greek name of 'Basileus', or "king." If I am not mistaken, I am following their steps in regular order, and unravelling the whole texture of their calumnies piecemeal.

How can the fabrication of the image have possibly been secret, as you allege, when you know so well who was the maker of it, that you have given him notice to appear? Look, here is Cornelius Saturninus, the carver, a man praised among his fellow-citizens for his skill and esteemed for his character; the same person, Maximus, who, a short time since, when you carefully enquired into all the circumstances of the transaction, recounted them with the strictest fidelity and veracity. He stated that, after I had seen at his house a number of geometrical figures made of boxwood, in a very clever and workmanlike manner, I was induced by his skill to request him to make for me some mechanical implements, and at the same time gave him a commission to carve for me the figure of any god he might think fit, and out of any material, so long as it was wood, that I might address my prayers to it, after my usual practice. Accordingly, he tried boxwood first. He also stated that, in the meantime, while I was in the country, my son-in-law, Sicinius Pontianus, who made it his study how to gratify me, having obtained from a most respectable lady, Capitolina by name, some boxes made of ebony, brought them to him, and requested him to make the implements of that material in preference, as being rarer and more durable; remarking that I should be especially gratified by such a present. In conformity with my son-in-law's request, he made the articles, as far as the wood of the boxes sufficed, and was able to complete besides a small figure of Mercury, by putting the layers of ivory piece by piece one upon another, in order to give it the requisite thickness.

As I say, all these particulars you heard from him: added to which, on examining the son of Capitolina, a most worthy young man, who is now present, you were told to the same effect; how that Pontianus asked for the boxes, and how that Pontianus took them to the artist, Saturninus. The fact, too, is not denied, that Pontianus received the image when completed

from Saturninus, and afterwards made a present of it to me. All these matters being clearly and distinctly proved, what remains after all this, in which any ground for suspicion of magical practices can lurk? Or rather, what is there in the whole matter that does not convict you of a manifest lie? You declared that the image was made secretly, while the fact is, that Pontianus, an illustrious knight, had it made; and that Saturninus, a man of respectability and of high character among his fellow-citizens, seated in his own workshop, carved it openly and without concealment; while a lady of the highest reputation aided the work by the present she made; numbers, too, both of my own servants and of my friends, who were in the habit of visiting me, knew that it was about to be made, and that it was made.

Were you not ashamed to invent such a lie, and to assert that I had gone all the city over in search of the wood, and that I had taken the greatest trouble in so doing, whereas you knew full well that at that very time I was absent, and had given orders, as was fully proved, that it was to be made of any kind of material? Your third lie was, that the figure was made to resemble a frightful corpse, all lean, or rather fleshless, quite horrible and spectre-like. Now, if you were aware of the existence of such an evident proof of magic, why did you not give me notice to produce it? Was it that you might be at liberty to lie as you pleased about a thing that was not before the court? Thanks, however, to a certain habit of mine, you cannot make this falsehood pass. For it is my custom, wherever I go, to carry with me the image of some god or other stowed away among my books, and to address my prayers to it on festive days, together with offerings of frankincense and wine, and sometimes victims. Accordingly, when I heard just now that most impudent fabrication of yours about a skeleton, I requested a person to go, post haste, and fetch from my lodgings the little image of Mercury which Saturninus had made for me at Oëa.

Come, let them see it; handle it, examine it. There it is before you — the thing that this scoundrel has called a skeleton. Do you not hear the expressions of displeasure so loudly uttered by all present? Do you not hear their condemnation of your falsehood? Are you not at last utterly ashamed of so many calumnious charges? Is this a skeleton? Is this the figure of a spectre? Is this a thing that you will persist in calling a demon? Is this an image adapted to magical practices, or is it one of the usual and ordinary kind? Take it, pray, Maximus, and look at it: to hands so pure and so holy as yours a sacred thing is well entrusted. There, now, just look at it; how beauteous its figure, and how replete with stalwart vigour; how smiling are the features of the god; how becomingly does the first growth of down overspread the cheeks, and how gracefully do the crisped locks peep forth upon the head from beneath the shelving brim of the cap! How charmingly do the wings shoot forth above his temples! How smartly, too, is the garment laid down in plaits about the shoulders! Any one who dares to call this a skeleton, it is clear that he never sees an image of the Gods; or if he does, he passes them all in heedless contempt. Any one who takes this to be the figure of a spectre, is a spectre-stricken being himself.

In return, Æmilianus, for this lie of yours, may this Divinity, who visits the Deities above and the shades below, bring upon you the enmity of the Gods who dwell in either realm, and may he thrust upon your vision phantoms of the dead, all the shades of hell, all the Lemurs, all the Manes, all the hobgoblins, all the apparitions of the night, all the spectres of the sepulchres, all the terrors of the tombs — from making a more intimate acquaintance with which, you are not very far distant, both in age and in deserts. But as for us, the disciples of Plato, of nothing do we know, except that which is festive and joyous, consistent with propriety, divine and heavenly. Nay, more, in its aspirations for what is exalted, this sect has even explored things loftier than the very heavens, and has taken up its abode

on the convex side of the firmament. Maximus knows that I speak the truth, for he has attentively read in the *Phædras* of “the place” which Plato mentions as “being above the heavens, and upon the back thereof.” Maximus, too, understands full well (to answer you in relation to the name) who it is that was called first of all, not by me but by Plato, by the title of “Basileus,” the first cause, and reason, and primitive origin of universal nature, the supreme father of the mind, the eternal preserver of animated beings, the ever-watchful artificer of his universe. And, indeed, he is an artificer who knows not labour, a preserver devoid of anxiety, a father without generation, one comprehended by no space, by no time, by no name, and therefore to be conceived by few, to be expressed by none. See, then, I volunteer to add to your suspicions of my magical pursuits. I do not answer you, Æmilianus, as to who it is I worship under the name of “Basileus.” Nay, more, even if the proconsul himself were to ask me who my God is, I should be silent. With reference to the name, for the present I have said enough; as for the rest, I am not unaware that some who stand around me are anxious to hear why I wished the image to be made not of silver or gold, but of wood especially; and this I believe they desire to know, not so much for the purpose of ensuring my acquittal as of gaining information, so that they may have their minds set at ease even upon this little matter, when they have seen every ground for suspicion abundantly confuted.

Listen, then, you who wish to know; listen with the closest attention, as though you heard the very words of the sage Plato, which are found in his last book, “On the Laws.”

“It is right that a moderate man should present offerings in moderation to the Gods. But as the earth, like the domestic hearth, is sacred to all the Gods, let no one dedicate that a second time to the Gods.” He gives this prohibition in order that

no private person may presume to erect a temple on his own property. For he thinks that public temples are sufficient for the citizens for the purpose of immolating victims. He then subjoins, "For gold and silver, both in other cities and in our own, employed in temples, is an odious thing. Ivory, too, as proceeding from a body deprived of life, is not a becoming offering. Again, iron and copper are instruments of warfare. But of wood, let each person consecrate as much as he pleases, so long as it is of a single kind, and the same as to stone, in the temples that are common to all."

The expressions of assent on all sides, and yours especially who sit here in judgment, show that I have most fortunately employed Plato not only as the guide of my life, but as my advocate in this trial, whose directions you see me so ready to obey.

It is now time to turn to the letters of Pudentilla, or, in deed, to go a little further back, and retrace all these events, in order that it may be palpable to all, that if I, who, they persist in saying, effected an entrance into the house of Pudentilla from motives of cupidity, had thought of any thing like gain, I ought rather to have always shunned that house, and an alliance that in other respects has turned out for me so far from fortunate. It is one, indeed, that would have proved disastrous to me, had it not been that my wife in herself, by her many virtues, makes ample amends for disadvantages so numerous; for really nothing can you find but disappointed envy as the prompter of this accusation, and the source of many previous perils to which I have been exposed.

But why, even if he really had found me to be a magician, should Æmilianus have been moved to indignation, when not only has he never been injured by any act, but not by the slightest word even of mine, so as to give him a pretext for taking umbrage and entertaining a desire for revenge? Nor yet is it for the sake of

renown that he accuses me; the ruling motive when M. Antonius accused Cneius Carbo; C. Mutius, A. Albertius; P. Sulpitius, Cneius Norbanus; C. Purius, M. Aquilius; C. Cario, Q. Metellus. For all these persons, men of the greatest learning and in the prime of life, made these their first efforts in the forensic art for the sake of gaining renown; and their object was, that by engaging in some celebrated cause they might become known to their fellow-citizens. But this custom, which, among those of former times, was allowable in rising young men, for the purpose of showing off the vigour of their intellect, has long since gone out of usage; and even if at the present day it were in use, it ought to have been resorted to by him the last of all. For neither would the boasts of eloquence have become a person so rude and so unlearned, the desire of glory one so clownish and so uncouth, nor the practice of pleading causes an aged man with one foot in the grave; unless it is, perchance, that Æmilianus, in accordance with his severity of manners, has wished to set an example, and from the very hostility that he entertains to vice itself, has, in conformity with the unblemished character of his morals, taken upon himself to make this charge. But this I could hardly have believed even of Æmilianus, not this African one, but him who was called Africanus Numantinus, and who had held, too, the office of censor; much less can I entertain the notion that in this stick here there is any hatred of crimes, or even so much as a comprehension of what they are.

What is the reason, then? To any one it is as clear as day that it is nothing else but envy that has instigated him and his prompter, Herennius Rufinus (of whom I shall have to speak presently), and the rest of my enemies, to frame these calumnious charges of magical practices.

There are five points, then, which it is incumbent upon me to discuss; for so many, if I remember aright, have they objected

against me in relation to Pudentilla. Now, the first point is, their assertion that after her first husband's decease she would never have married again, had she not been forced by my incantations; the second concerns her letters, which they consider to be an admission of magical practices; then, in the third and fourth places, they have made the objection that in the sixtieth year of her age she was married to gratify lustful propensities, and that the marriage contract was signed not in town, but at her country house. The last and the most odious charge is that which bears reference to her fortune. Into that they have with all their might discharged their whole venom; upon that point they were most especially anxious, and this is what they have alleged; they say that immediately after we were married, at her country house, remote from all witnesses, I extorted from my fond wife this large fortune of hers. All these assertions I will prove to be so false, so worthless, so unfounded, and will so easily and beyond all question refute them, that truly, Maximus, and you councillors, I do very much fear you will think that the accuser has been engaged and suborned by me, to give me an opportunity publicly to extinguish the rancorous hatred with which I have been pursued. Believe me when I say it, and the event will prove my words true, that I shall have to take all possible pains that you may not suppose rather that I have in my craftiness devised, than that they have in their folly undertaken so frivolous a prosecution.

Now, while I briefly recount the circumstances of the case in their order, and force Æmilianus himself to own on what false grounds he has been induced to hate me, and that he has wandered far indeed from the truth, I beg that you will as carefully as you have already done, or even more so, if possible, consider one very origin and foundation of this trial.

Æmilia Pudentilla, who is now my wife, had, by one Sicinius Amicus, to whom she was previously married, two sons,

Pontianus and Pudens. These children were left orphans, and under care of their paternal grandfather (for it so happened that Amicus died, leaving his father surviving him), on which she manifested the most exemplary affection, and brought them up with the greatest care for a period of fourteen years. Still, however, it was by no inclination of hers that, in the flower of her age, she remained so long in a state of widowhood; but the grandfather of the children used all his endeavours to unite her, much against her wish, to Sicinius Clarus, another son of his, and for that reason he kept all other suitors at a distance, while at the same time he threatened that if she should marry a stranger, he would by his will leave no portion of their paternal property to her sons. Being a woman endowed with prudence and of exemplary affection, and seeing this match so perseveringly proposed to her, she complied, and executed a marriage contract with Sicinius Clarus, that she might not, through any conduct of hers, be the cause of detriment to her children. However, by resorting to various pretexts, she put off the nuptials until such time as the grandfather of the children had departed this life, leaving her sons his heirs, and upon the understanding that Pontianus, who was the elder, should be the guardian of his brother.

On being thus set free from this state of perplexity, she was sought in marriage by men of the highest rank, and she accordingly made up her mind no longer to remain in a state of widowhood; for, although she might have been able to endure the tediousness of celibacy, she was quite unable to bear up against bodily ailment. A woman of inviolable chastity, who had lived so many years in a state of widowhood, without a blemish, without an aspersion on her character, with her system torpid from her prolonged disuse of the married state, afflicted with a protracted inactivity of the vital parts, the interior of her womb disordered — she was often brought by her sufferings to extreme peril of her life. Both doctors and midwives agreed that

the disease had taken its rise through disuse of the married state, that the malady would gain strength every day, and her weakness become still greater; and they strongly suggested that while some hopes of life were still remaining, recourse ought to be had to marriage.

Other persons, too, approved of this advice, Æmilianus here, in especial, the very man who, a short time since, asserted with most audacious falsehood, that Pudentilla never entertained a thought about marriage, until she was coerced by me through magical practices; and that I was the only one found to violate the flower of her widowhood, a kind of virginity, as it were, by means of my charms and drugs. I have many a time heard it said, with very good reason too, that “A liar ought to have a good memory.” Now, did it not occur to your recollection, Æmilianus, that before I even came to Oëa, you had gone so far as to write a letter to her son, Pontianus, who was then grown up, and residing at Rome, in which you recommended that she should marry? Give me the letter, will you, or rather hand it to him; let him read it; by his own voice and by his own words let him convict himself. [He reads the beginning of the letter.] Is not that your own writing? Why do you turn pale? for blush you decidedly cannot. Is not this your signature? Read it, I beg, and aloud, too, so that all may understand what a vast difference there is between this man’s tongue and his hand, and how much less he disagrees with me than with himself. [The clerk of court reads the rest of the letter.]

Were you not the writer, Æmilianus, of these words which have been read? “I know that she wishes and ought to marry; but whom she may choose, I do not know.” Quite right, no doubt you did not know. For Pudentilla, being well aware of your spiteful malignity, only thought proper to inform you of the fact, but said nothing at all about a suitor. You, however, deluded by vain hopes that she would marry your brother

Claras, even went so far as to advise her son Pontianus to consent to her marriage. Consequently, if she had made choice of Claras, a clownish and decrepit old man, you would have been ready to assert that, quite spontaneously, and without any magical practices whatever, she had long been anxious to marry; but as she has made choice of such a youth as you talk of, you affirm that it was by compulsion she did so, and that, otherwise she always entertained an aversion to marriage. You little thought, dishonest man, that your letter on this matter had been preserved; you little thought that you were going to be convicted on your own testimony. Pudentilla, however, knowing full well how fickle and changeable you were, and how untruthful and shameless to boot, thought it better to keep this letter than to part with it, as an evidence of your own wishes on the subject.

Besides, she herself wrote to her son, Pontianus, while he was at Rome, on the same subject, and entered very fully too upon the causes that prompted her to take this resolution. She mentioned to him all the matters connected with her health, that besides there was no reason why she should persist any longer in remaining unmarried; she reminded him, how that, disregarding her own welfare, she had, by her prolonged state of widowhood, obtained for them their grandfather's property, and had with the most scrupulous carefulness increased the same; that, thanks to the Gods, he himself was now of marriageable estate, and his brother ready to assume the manly gown: that they ought now at last to allow her to find some alleviation for her state of solitude and sickliness: that they need be under no apprehension as to the constancy of her affection, and her remembering them in her last will: that such as she had shown herself towards them while a widow, she would still prove when a wife. I will request the copy of this letter to be read, which she sent to her son. [The copy of the letter of Pudentilla to her son Pontianus is read. J I think that

from this letter it may be quite manifest to any one that it was not by any incantations of mine that Pudentilla was prevailed upon to abandon her prolonged state of widowhood, but that having been for a long time not averse to marriage, she perchance preferred me to the rest. And really do not see why this choice made by a woman of such respectability, ought to be imputed to me as a crime, rather than an honor. But I do wonder that Æmilianus and Rufinus take amiss this decision of the lady, when those persons who aspired to the hand of Pudentilla bear with resignation the fact that I was preferred to them. Besides, in so doing, she rather consulted her son's wishes, than her own feelings on the subject. That such was the fact, not even Æmilianus can deny.

For Pontianus, on receiving his mother's letter, instantly flew hither with all haste from Rome, being greatly afraid, if she should take some greedy fellow for a husband, she would be carrying off everything, as too frequently is the ease, to her husband's house. This anxiety influenced his feelings in no slight degree: for all the hopes of himself and of his brother were centred in possessing the property of their mother. Their grandfather had left a small property, their mother's possessions amounted in value to four millions of sesterces. Out of this sum she did, no doubt, owe some money to her sons, which she had borrowed from them without giving any vouchers, but simply on her own credit. These apprehensions of his he kept secret; for he did not dare openly to offer opposition, lest he should seem to distrust her. While matters were in this state, the mother being wooed, and the son racked with apprehensions, whether it was by chance, or by a kind of fatality, I happened to arrive there, being on my road to Alexandria. "By Hercules, I only wish it had never so happened," I might add, if respect for my wife did not prevent me. It was the winter season. Fatigued by the journey, I made a stay of several days at the house of the Appii, old friends of mine, whose names

I mention to testify for them my honor and my esteem. While I was staying there, Pontianus called upon me; for, some few years before, he had been introduced to me at Athens, by some common friends of ours, and had been subsequently united to me by ties of the strictest intimacy. He was in everything sedulous to testify his respect for me, to promote my welfare, and dexterously to prompt my affections. For he thought that in me he had now found a very suitable husband for his mother, and one to whom he might, without any risk, entrust the welfare of the family.

He began to sound my inclination by hints, and as he perceived that I was intent upon pursuing my travels, and averse to wedlock, he begged that I would at least make a short stay. He said that it was his wish to accompany me, that it was unadvisable then to proceed on account of the burning heat of [the sands of] the Syrtis, and the wild beasts that infested it, and that as my bad state of health had deprived me of the present winter, it would be as well to wait for the next. By force of entreaties, he withdrew me from the house of my friends, the Appii, to transfer me to his mother's abode, as likely to prove a more healthy place of residence for me; besides, I should be able from her house to enjoy a very extensive view of the sea, a thing that for me has especial charms. He urged these considerations with great earnestness, and introduced to me his mother and his brother, this same youth. They received some assistance from me in their common studies, and the intimacy increased apace. In the meantime I recovered my health, and at the request of my friends I gave a public lecture. All who were present in the thronged basilica, the place appointed for its delivery, cried out with one accord, requesting that I would remain there, and become a citizen of Oëa. When the audience had departed, Pontianus addressed me, and began by saying that he interpreted this accordance in the public voice as an omen from heaven. Then he disclosed to me that it was his own

wish, if I had no objection, to unite me to his mother, whom a great many persons were eager to obtain; seeing that, as he said, I was the only person in whom he placed entire trust and confidence. Would I take upon me that incumbrance? for it was no pretty maiden he offered me, hut a woman, the mother of children, and of homely features. If, on thinking over these things, I should reserve myself for some other match, with the view of gaining beauty or riches, he would neither take me for a friend nor a true philosopher.

My speech would be far too long, were I to relate what I stated to him in answer; at what length, and how frequently the subject was discussed by us; with what repeated and earnest entreaties he plied me; and how he never ceased till he had finally gained his point. Not but that having now lived in the same house with her a whole year, I had become thoroughly acquainted with Pudentilla's character, and had discovered her virtuous endowments; still, as I was anxious to travel, I declined for some time to marry, as being likely to prove an impediment to my design. Before very long, however, I was no more disinclined to take such a woman for my wife, than if I had sought her of my own accord.

Pontianus, too, had prevailed upon his mother to choose me in preference to all others, and showed incredible anxiety to bring it about as soon as possible. It was with difficulty we obtained of him even a short respite, until such time as he himself should have married, and his brother have assumed the manly gown; after which we agreed to be united in marriage. I wish, by Hercules! it were possible, without the greatest injury to my cause, to pass over the matters which I am obliged next to mention, that I might not appear now to accuse Pontianus of fickleness, whom I forgave freely and without reserve, when he asked forgiveness for his error. For I am ready to confess a thing that has been brought forward as a charge against me, that,

after he was married, he was guilty of a breach of that fidelity which he had pledged to me, and that, suddenly changing his mind, he endeavoured with equal pertinacity to prevent that which he had before endeavoured with the greatest zeal to promote — that, in fact, he was ready to submit to anything, to do anything, in order that our marriage might not take place. And still, all this unbecoming change of mind on his part, and this ill-will against his mother, ought not to be imputed as a fault to him, but rather to his father-in-law, who stands there, Herennius Rufinus, a man who has left not one individual upon the face of the earth more vile, more dishonest, or more iniquitous than himself.

In a very few words, as I am necessitated so to do, I will describe the man, but still in language as moderate as I possibly can; lest, if I should be altogether silent about him, he should have lost his pains, in using his utmost endeavours to create for me all this trouble. For it is he who is the instigator of this stripling; it is he who is the prompter of this prosecution; it is he who is the hirer of these advocates; it is he who is the suborner of these witnesses; it is he who is the furnace wherein this calumny has been annealed; it is he who acts as the torch and the goad of AEmilianus here; while in the presence of all, he boasts most immoderately that it is through his machinations that I have been accused. And, no doubt, he has in these matters very good grounds for congratulating himself. For he is the base contractor of all litigation, the inventor of all falsehoods, the framer of all pretences, the hotbed of all mischiefs; he, too, is a very haunt, a den, a brothel for lusts and debaucheries; from his very earliest age he has been universally notorious for his disgraceful vices. Formerly, in his boyhood, before he was disfigured by that baldness of his, he was subservient to his corruptors in the perpetration of every infamous crime; after that, in his youth, as a dancer on the stage, he was so pliant in body as to seem to be utterly without bones and nerves; but,

from what I hear, he was remarkable for a coarse and uncouth effeminacy. Indeed, he is said to have had nothing whatever of the actor, except the immodesty. At his present age, too, the years at which he has now arrived — may the Gods confound him! — high commendations these to be uttered in his hearing — his whole house is a brothel, his entire household a mass of corruption, himself devoid of all shame, his wife a prostitute, his sons just like himself. His door, a sport, day and night, for the young men of the place, is battered by their heels, his windows serenaded by their ditties, his dining-room kept in an uproar by revellers, and his bed-chamber a common thoroughfare for adulterers; nor, in fact, has any one the least fear to enter it, with the exception of him who has brought no admission-fee to the husband. In this way is the dishonor of his bed a source of income to him. Formerly he used to earn money by his own person; now he earns it by letting out the person of his wife.

With this same man, many a one — I am telling no falsehood — with this same man, I say, many a one has bargained for a night with his wife. Hence, then, that collusion which is so notorious between the husband and the wife. When people have brought a handsome compliment for the woman, no one takes any notice of them, and they take their departure at their own time and pleasure. But as for those who have come not so well supplied, on a signal given, they are seized as adulterers; and, as though they had come for the purpose of learning a lesson, they do not get away before they have done a little writing.

But really what was the wretched man to do when he had lost a very handsome fortune — one, however, which he had quite unexpectedly picked up through his father's fraudulent proceedings? This father of his, being eaten up by usurious debts due to a great number of creditors, preferred to save his money rather than his honor. For when he was dunned on all sides on his bonds, and clutched hold of by all who met him, just

as though he had been a madman— “Have patience,” he exclaimed; and then he declared it was not in his power to pay his debts; laid aside his gold rings and all the insignia of his rank, and made a composition with his creditors. But, by a most artful fraud, he managed to transfer the greater part of his property into the name of his wife; and so, himself in want, and stripped naked, though covered with his ignominy, he left to Rufinus here — I am telling no falsehood in so saying — three millions of sesterces for him to devour. For fully that sum came to him as his mother’s property, free and unencumbered, besides all that his wife has earned for him by her marriage-portions from day to day. All these sums, however, this gluttonous wretch has so carefully stowed away in his paunch, and squandered upon his orgies of all kinds, that you would really suppose he was afraid lest it might be said that he retained possession of anything that was the result of his father’s frauds. This man, so just and so pure in his morals, used his utmost endeavours that what was so badly gotten should be as badly lost; and, from being the possessor of this enormous fortune, he has nothing left, except a wretched ambition and an insatiate appetite.

As for his wife, being now an old woman and nearly worn out, she has at last given up her disgraceful courses. And then, as for his daughter, after having, to no purpose, at the instigation of her mother, gone the round of all the rich young men, and after having been lent even to some of her suitors for them to make trial of her, if she had not fallen in with the good-natured, easy tempered Pontianus, she would perhaps have been still sitting at home a widow before she was a wife. Although we most strongly dissuaded him from doing so, Pontianus conferred on her the false and misplaced name of wife, not being unaware that, shortly before he married her, she had been deserted by a young man of the highest respectability, who had become tired of her, and to whom she had been previously engaged.

Accordingly, his new-married wife came home to him full of assurance, and unabashed, with her chastity rifled, her virginity lost, her nuptial veil all sullied; after her so recent repudiation, a virgin once more, but bringing with her rather the name than the unblemished character of a maid. In a litter supported by eight persons was she borne along. You saw, no doubt, you who were present, how shamelessly she stared about her at the young men, how immodestly she exposed herself. Who was there that did not recognize the mother's training, when, in the daughter, he beheld the face beplastered with cosmetics, the rouged cheeks, and the ogling eyes? The very day before, her entire fortune was swept away by a creditor, to the utmost farthing, and certainly a larger one than a house impoverished and full of children would bespeak.

However, this fellow, whose circumstances are as limited as his hopes are inordinate, his avarice being commensurate with his neediness, had in his vain anticipations gulped up the whole four million sesterces belonging to Pudentilla; and therefore, as he thought that I ought to be got out of the way, in order that he might more easily practise upon the pliable disposition of Pontianus and the solitary state of Pudentilla, he began to rate his son-in-law for having engaged his mother to me; prompted him, while yet he had the opportunity, as speedily as possible, to extricate her foot from such great peril; told him that he himself ought to possess his mother's property, rather than purposely hand it over to a stranger; and in case he should decline to do so, this crafty knave alarmed the enamoured youth by threatening that he would take home his daughter. Why enlarge upon the subject? At his own will he led the simple-minded youth, entangled in the allurements of his new-made bride, quite away from his original design. Carrying with him the words of Rufinus, he goes straight to his mother. However, after trying in vain to shake her constancy, after taking upon himself to censure her for levity and fickleness, he

had to carry back no pleasing report to his father-in-law: that, contrary to her extremely mild and imperturbable disposition, his mother had been roused to anger by his expostulations, which served in no slight degree to support her in her obstinate determination: that, finally, she declared she was by no means unaware that it was through the advice of Rufinus he expostulated with her, for which reason she should be all the more inclined to obtain the protection of a husband against his desperate avarice.

On hearing these words, this pander to his wife so swelled with anger, so blazed with rage, that in the presence of her own son he said things against this lady, a woman of most chaste and modest character, which would have been far more befitting his own chamber, and shouted out that she was a love-sick creature, and I was a magician and sorcerer; and this in the hearing of many persons, whom, if you desire it, I will name; and declared that with his own hand he would put an end to me. Hardly, by Hercules! can I moderate my anger, so great is the indignation which rises in my mind. What, you, you most effeminate wretch! do you threaten death to be dealt with your hand to any man? With what hand, pray? Is it the hand of Philomela? or of Medea? or of Clytemnestra? whom, when you personate in the dance, such is the effeminacy of your disposition, such is your dread of steel, that you are afraid to dance with the mimic sword.

But, not to digress any further, when Pudentilla saw that her son was corrupted contrary to her expectations, she went into the country, and there wrote to him that famous letter of hers, in which, as they said, she admitted that she had been bereft of her senses and induced to love me through my magical practices. And yet this very letter, by your order, Maximus, I copied at length the day before yesterday, in presence of the public registrar, and before witnesses, Æmilianus taking a copy

at the same time; and in every point it is found to tell in my favour, and against their accusations. For even if she had distinctly called me a magician, it might seem that in excusing herself to her son, she preferred to do so rather on the ground of my irresistibleness than of her own inclination. Is Phædra the only woman that ever wrote an untrue letter on the subject of love? Is not this a common artifice with all females, to try and make it appear that they act by compulsion, when they have once set their minds upon any thing of this nature?

And even if she did in her own mind think that I was a magician, am I any the more a magician, because Pudentilla has written to that effect? You, by your numerous arguments, your multitude of witnesses, your lengthy oration, fail to prove that I am a magician; was she by a single expression of hers to prove it? And yet of how much greater weight ought a charge to be considered which is undertaken to be proved in a court of justice, than an assertion merely made in a letter? But why do you not convict me by my own actions, and not by the words of another person? Henceforth, on the same principle, many will be accused of all sorts of offences, if things are to be held as true which anybody, influenced by love or by hatred of another, has written in a letter. Pudentilla has written that you are a magician, therefore you are a magician. Suppose she had written that I was a consul, would it follow that I really am a consul? And what if a painter, what if a physician? what, in fine, if she had said I was innocent? would you have believed her in any one of these assertions, merely because she said so? In none of them, no doubt. Well, but it is most unjust to give credit for evil to one to whom you would decline to give the same credit for good; to allow his letters to have power to injure, and yet not to have power to save. "But her feelings were racked with anxiety," you say; "she loved you to distraction." For the moment, I will grant it. Is it the fact, then, that all who are beloved are magicians, if the person who loves happens to write

to that effect? You must admit, now, that at this period Pudentilla did not love me, inasmuch as she wrote that to others which was destined to be to my prejudice before the public. In fine, which do you wish to assert, that she was sane, or that she was insane, when she wrote the letter? Sane, do you say? then she has suffered nothing from my magical practices. Insane, will you answer? then she did not know what it was she wrote, and therefore we must put no faith in her assertion.

And then, besides, if she had been insane, she would not have known that she was insane. For in the same way that the person acts absurdly who says that he is silent, because in the very act of saying that he is silent, he is not silent, and by his very affirmation he contradicts what he affirms: so, even more self-contradictory is the expression, "I am insane," because it is not true, unless he who says it knows what it is to be insane. But he who knows what insanity is, is sane; whereas insanity can no more be sensible of its own existence, than blindness can see itself. Consequently, Pudentilla, if she fancied that she was not in her senses, was quite in her senses. I could, if I chose, enlarge upon the subject, but I will now have done with logic. I will have the letter itself read, which cries aloud to a far different effect, and which seems as though it had been prepared and framed for the very purpose of this trial. Take it and read on until I interrupt you. [Part of the letter of Pudentilla is read.] Cease reading for a moment, for we have now arrived at the turning point in this matter.

Thus far, Maximus, from all that I can perceive, this lady has nowhere mentioned the name of magic, but has recounted the very same train of circumstances that I did a short time since, as to her long widowhood, the cause of her bad state of health, her wish to marry, my own good qualities, of which she had heard an account from Pontianus, and his recommendation that she should marry me in preference to any one else. Thus far has

now been read; there remains the other portion of the letter, which, though written in like manner in my favour, has been made to turn its horns against me, and which, while it was sent for the very purpose of removing from me all suspicion of magical practices, has, to the transcendent glory of Rufus, changed sides, and gone so far as to gain for me a quite opposite character in the eyes of certain persons in Oëa, as though I really were a magician. Much in the interchange of conversation, Maximus, you have heard, still more in reading you have learned, and no little knowledge by experience you have gained; but still, you must declare that treachery so insidious, and contrived with such astounding wickedness, you never heard of. What Palamedes, what Sisyphus, what Eurybates, in fine, what Phrynonidas could have thought of such a thing? All those whom I have named, and any besides who have been famed for their cunning, if put in comparison with this single device of Rufinus, would seem to be utter fools and blockheads. O wondrous invention! O subtlety, worthy of the prison and the dungeon cell! who would have believed that it could come to pass that what was a defence, could possibly, while the characters still remained the same, be transformed into an accusation? By Hercules! it transcends all belief!

But how this thing, which so transcends belief, was brought about, I will now explain to you. It was the rebuke of a mother to her son, because, at the dictation of Rufinus, he was now declaring, that I, a man whom he had so highly extolled to her, was a magician. The words themselves were to this effect: [in Greek.] “Apuleius is a magician, and I have been enchanted by him! I certainly do love him. Come then to me, until such time as I shall have recovered my senses.” How these words, which I have read in Greek, picked out by themselves, and separated from their proper context, Rufinus showed to everybody, as a confession made by the lady, at the same time leading Pontianus with him as he hawked them about the forum.

He allowed the letter which she wrote to be read, just as far as I have quoted; what was written before and after he used to conceal, saying, it was of too disgraceful a nature to be shewn, and that it was enough to know that the lady had made confession of magical practices. What could be wanted more? It appeared a very probable story to all. The very words that had been written for the purpose of exculpating me, stirred up intense hatred against me, among those who did not understand the matter. This abominable fellow, raving in the midst of the forum, like a very bacchanal, collected crowds together; ever and anon opening the letter, he would appeal to the citizens, and exclaiming, “Apuleius is a magician, what she feels and suffers she herself declares; what more would you have?” There was no one to take my part, and thus to answer him, “Have the goodness to give me the whole of the letter. Allow me to see every part of it, and to read it from beginning to end. There are many things, which when produced in an unconnected form, may seem amenable to accusation. Any person’s language may afford ground for a charge, if words which are connected with preceding ones are to be curtailed of their beginning; if certain parts in the current order of what has been written are to be suppressed at pleasure; if what has been asserted ironically, is to be read rather in the tone of a person who admits, than of one who indignantly expostulates.”

How justly these and other such remarks might have been made on those occasions, the tenor itself of the letter will show. Now tell us, Æmilianus, whether you did not, in the presence of witnesses, copy these words at the same time as myself. [In Greek.]— “For when I was desirous, for the reasons I mentioned, to marry, you yourself persuaded me to choose him in preference to all others, because you admired the man, and greatly wished, through my means, to make him a connection of ours. But now, when wicked and evil-minded men prompt you, all on a sudden, Apuleius is a magician, and I have been

enchanted by him. I certainly do love him. Come then to me, until such time as I shall have recovered my senses.” I ask you, Maximus, if letters, some of which are called vocals [vowels], could indeed find a voice, if words were winged, as poets say, would they not, the instant Rufinus, with such bad faith, made these extracts from this letter, and read a few words only, while he purposely withheld the greater and better part, — would not the rest of the letters have shouted aloud, that they were being wickedly suppressed? Would not the words so suppressed, have taken flight from the hands of Rufinus? Would they not have filled the whole forum with their outcries? Would they not have declared that they, too, were sent by Pudentilla, that they, too, had a message to speak? Would they not have said this, in order that people might not listen to a dishonest and wicked man attempting to establish a falsehood by means of the letter of another person, but listen in preference to their own declaration, that Apuleius was not accused by Pudentilla of the practice of magic, but when accused by Rufinus, was acquitted by her of the fact. All these things, although not then expressed, are now made clearer than daylight, at a time when they are of still greater service to me. Your artifices, Rufinus, are exposed; your frauds are detected; your falsehoods are set forth to view. The truth, before suppressed by you, now raises itself erect, and emerges as it were from the deep pit of calumny. You challenged me to abide by the letter of Pudentilla; by that letter do I conquer; and if you choose to hear the latter portion of it also, I will not prevent it. Bead the words with which this spell-bound, insane, demented, and love-stricken woman closes her epistle: “I have not been enchanted at all; that I am in love, is the work of Fate.” What more than this do you require? Pudentilla contradicts you, and, by proclamation as it were, defends her sanity from your calumnious charges. For the cause or necessity of her marrying, she ascribes to fate, from whose operations magic is far removed indeed, nay, utterly estranged.

For what virtue is there left in spells and enchantments, if the fate of each individual thing, like a torrent of most impetuous violence, can neither be restrained, nor yet accelerated in its course? Why, in this sentence of hers, Pudentilla has not only denied that I am a magician, but even that such a thing as magic exists.

It is fortunate that Pontianus, according to his usual custom, kept his mother's correspondence safe; it is fortunate that the speedy hearing of this cause has precluded you from finding leisure to make any alteration in this letter. This advantage is owing to you, Maximus, and to your foresight; because, seeing from the very first into the calumnious nature of these charges, you hurried on the hearing of them, in order that they might not gain strength by lapse of time; and so, by granting them no respite, you have nipped their growth.

Suppose, now, that in a letter written in confidence, the mother had, as often is the case, made some confession to her son with reference to love, would it have been right, Rufinus, not to say duteous or manly even, for the contents of such a letter to be divulged and published, and that above all, on the information of her son? But I am a simpleton to expect that you should be observant of the fair name of another, seeing that you have lost your own. But why do I complain of what is past, when the present is no less distressing? That this boy should be so utterly corrupted by you, as to read aloud the letters of his own mother, which he takes to be of an amatory character! and that he should, before the tribunal of a proconsul, before Claudius Maximus, a man of the strictest virtue, in presence of these statues of the emperor Pius, accuse his own mother of shameless incontinence! Who is there so meek as not to be incensed at this? What! make it your business to pry into your parent's thoughts in such matters; to watch her eyes; count her sighs; scrutinize her feelings; intercept her letters; accuse her of

amorousness. What! spy out what is done in the retirement of the chamber, not to say by your own mother when in love, but by any lady whatsoever! Is it possible you can imagine that she was inspired by any other than the affectionate feelings of a parent?

Alas! unhappy was thy womb, Pudentilla! Oh, barrenness, how far preferable to progeny! Oh, ten months productive of what unhappiness! Oh, fourteen years of widowhood thus ill repaid! The viper, I have heard say, eats through the womb of its mother, and crawls forth to light, and so owes its birth to parricide. But upon thee, while living, are inflicted wounds still deeper, those, too, by a son who has already arrived at years of maturity. Thy state of solitude is lacerated, thy fair name is mangled, thy breast is stabbed, thy inmost vitals are torn away!

Is this the way that, like a good son, you make return to your mother for having given you life — for acquiring an inheritance for you — for providing for your support during fourteen long years? Or has your uncle trained you in a course like this, in order that you might feel convinced that your sons would turn out like yourself, and so might not venture to marry? There is a line of a poet which is not uncommonly quoted: “I hate precocious wisdom in young boys.”

But, still more, who would not hate and detest precocious wickedness in a boy? when he beholds him, like a sort of monster, full grown up in crime before he is mature in years, venomous before he is come to his strength, green in boyhood, in villainy hoary, and even more baneful because he is sure of impunity, and while he is abundantly able to inflict injuries, he is not liable to pains and penalties. Injuries, did I say? Nay, crimes rather, and those against a parent; crimes infamous, enormous, astounding! Why, the Athenians, in consideration of the common rights of humanity, when the intercepted letters of Philip of Macedon, their enemy, were read in public, forbade

one to be published which had been written by Philip to his wife, Olympias. They chose rather to spare an enemy than to divulge the secrets which had been entrusted by a husband to his wife, being of opinion that universal right ought to be regarded rather than private vengeance.

Such did enemies shew themselves towards an enemy; what sort of a son have you shewn yourself towards your mother? Do you see how extremely similar are the cases I compare? And yet you, a son, read letters written by your own mother, on amorous subjects, as you allege, in the presence of this numerous assemblage, before whom, if you had been requested to read some wanton poet, you assuredly would not have ventured to do so, but would have been prevented by some sense of shame; indeed, if you had ever touched upon letters in general, you would never have touched letters written by your own mother. But what an epistle of your own was it that you ventured to give to be read! the letter which, most disrespectfully, most insultingly, and most basely, you wrote about your mother, and secretly sent to Pontianus, at the very time that you were still nurtured in her bosom! in order, I suppose, that you might not have sinned once only, and that such reputable conduct as yours might not be buried in oblivion. Wretched youth! you do not perceive that your uncle allowed this to be done, in order that he might exculpate himself in the sight of men, when it should become known from your own letter, that even before you betook yourself to him, even when you were still fawning upon your mother, even then you were acting a fox-like and unnatural part. Besides, I cannot bring myself to believe that Æmilianus is so simple as to suppose that the letter of a boy, and that boy my accuser, could do me any injury.

Then, there was that counterfeit letter, which was neither written by my hand, nor even forged with any likelihood, by

which they wished to make it appear that this lady had been plied by me with blandishments. Why should I need to resort to blandishments, if I relied on my magical powers? Besides, by what means, too, was a letter to come into their hands, which was, no doubt, sent to Pudentilla by the hands of some trusty messenger, as usual in matters of this nature? And why should I write in expressions so ungrammatical, in language so barbarous, when they assert that I am far from unacquainted with the Greek language? Why, too, should I solicit her with compliments so absurd, so pot-house like, when they say that I am able to express myself elegantly in the wanton numbers of amatory verse? The truth, no doubt, is this; to every one it is self-evident: — he who was not able to read the letter of Pudentilla, because it was expressed in purer Greek, could read this more easily, and find himself more at home in descanting upon it, because the composition was his own.

But now, I shall consider that I have said sufficient on the subject of these letters, when I shall have added this single fact, that Pudentilla, after having written by way of irony and joke, “Come until such time as I shall have come to my senses,” after the date of that very letter invited to her house her sons and her daughter-in-law, and lived there with them for a period of nearly two months. Let this dutiful son declare what, during that period, he saw his mother either do or say that was unbecoming, in consequence of this insanity of hers. Let him deny that she did, in the most intelligent manner, audit and sign the accounts of the bailiffs, and the shepherds, and the grooms; let him deny that his brother Pontianus was seriously warned by her to be on his guard against the insidious designs of Rufinus ; let him deny that he was justly censured for having everywhere carried about the letter which she had written to him, and yet not having read it faithfully; let him deny that, after all this, his mother was married to me at her country-house, the place previously agreed on between us.

For we had thought it better for us to be united at her country-house in the suburbs, in order that the people of the city might not again flock to us for largesses; as it was not very long since Pudentilla had expended fifty thousand pieces of money, her own property, upon the public, on the day on which Pontianus was married, and this boy was invested with the manly gown. Another reason, was our wish to escape numerous invitations and annoyances which newly-married people generally have to submit to. Here, Æmilianus, you have the entire cause why the marriage contract between me and Pudentilla was signed, not in town, but at the country-house, that she might not have again to expend fifty thousand pieces of money, and that we might not be obliged to feast in your company, or at your house.

Was not the cause, then, a reasonable one? Still I am surprised that you, who generally live in the country, have such a remarkable aversion to a country-house. The Julian law, at all events, in its ordinances for the regulation of marriages, nowhere contains any prohibition to this effect—"Marry not a wife at a country-house." Nay, to say the truth, a wife is married under much better auspices, so far as relates to progeny, at a country-house, than in a town — upon a fruitful soil, than in a sterile spot — upon the glebe of the field, than upon the stones of the Forum. She who is destined to be a mother, ought to enter upon the marriage state in the very bosom of her mother, among the ripening ears of corn, and upon the fertile sod; or else she should recline beneath the wedded elm, on the lap of her mother earth, amid the offspring of the grass, the progeny of the vines, and the offshoots of the trees. Closely in accordance with this is that line, so frequently quoted in the comic writers — "Children in fields are lawfully begot."

To the Romans of ancient times, the Quintii, the Serrani, and many others like them, not only wives, but consulships even,

and dictatorships, were presented in the country. I will check, myself, however, in a field of such ample range, that I may not gratify you [a rustic] by lavishing praises upon a country-house.

And now, as to the age of Pudentilla, about which, after these other matters, you uttered falsehoods with such great assurance, as even to assert that she was sixty years of age when she married, I will say a few words; for, on a matter so self evident, it is not necessary to descant at any great length. Her father, at her birth, made the usual declaration, that she was his daughter. Her register is preserved, one part in the public registry, the counterpart at home, and the latter is now presented before your face. Hand that register to Æmilianus. Let him see the fastenings, examine the impression of the seal, read the names of the consuls, and count the years. Of the sixty years that he gave to this lady, let him prove as much as five and fifty. By a whole lustrum has he deviated from the truth. But that is not enough: I will deal with him still more liberally. For he has made a present of a great number of years to Pudentilla; I shall, therefore, have to give them hack to him by way of return. Like Ulysses, Mezentius has gone astray ten whole years; let him prove, at least, that this lady is fifty years of age. But why use many words? To deal with him as I would with a four-fold informer, I will double the five years twice over, and at once strike off twenty. Order the consuls to be reckoned, Maximus: if I am not mistaken, you will find that Pudentilla is not now much beyond her fortieth year. Oh, audacious and outrageous lie, that ought to be visited with an exile of twenty years! Do you dare, Æmilianus, to amplify your lies, by thus adding to them one half as much again? If it had been thirty years^s that you stated instead of ten, you might possibly have appeared to have made a mistake in the position of your fingers in counting, and, where you ought to have contracted the fingers in a circle, to have opened them too wide. But when the number forty, which is denoted more easily than any of the others, by opening out the

palm of the hand, when this number forty you increase by half as much again, you can have made no such mistake in the position of your fingers; unless, perhaps, you took the years of Pudentilla to be thirty, and accidentally added together the two consuls for each year.

All these matters I pass by: I now come to the very root of this accusation, to the very cause of the alleged magic. Let Æmilianus and Lufinus make answer for what profit, even if I had been the greatest of magicians, I should by charms and by drugs have enticed Pudentilla to marry me. And yet I am well aware, that many a person has been accused of a crime, where certain motives for the commission of it could be proved to exist, and still, has most successfully defended himself by shewing that his whole course of life has been utterly averse to misdeeds of such a nature; and that it ought not to prove to his detriment if there seemed to exist some inducements for the perpetration of the crime. For not every thing which possibly may have happened, ought to be considered as really having happened. There are various fluctuations in human affairs; but the disposition of each person affords a sure evidence, for, as it is always affected with the same tendency towards virtue or towards vice, it affords an unerring proof of the readiness to embrace criminality or to reject it.

Although I might, with the greatest justice, make use of these arguments, still, I spare you them; nor do I deem it enough to have abundantly proved my innocence on all the points on which you accuse me, and to have never allowed the slightest suspicion even of the practice of magic to attach to me. Only consider what a degree of confidence in my own innocence I display, and what supreme contempt of you [my accusers], when I say that if even the slightest ground shall appear why I should have coveted this match with Pudentilla for the sake of any advantage to myself, if you shall prove the most trifling

gain to me thereby, then may I be held to be a Phrynondas, a Damigeron, a Moses, a Jannes, an Apollonius, or even Dardanus himself, or any one else, who, since the days of Zoroaster and Ostanes, has been celebrated among magicians. — Do see, Maximus, I beg of you, what an uproar they raise, merely because I have enumerated a few of the magicians by name. What am I to do with men so ignorant, so barbarous? Am I to tell them over again, that these and very many other names I have read in public libraries, in the works of authors of the highest reputation? Or am I to discuss the point, that it is one thing to be acquainted with their names, but quite another to have been initiated into the art itself, and that the appliances of learning, and the recollections of erudition, are not to be held to be a confession of criminality? Or shall I do better, and rely, Claudius Maximus, on your learning, and extensive information, and not think it worth my while to make answer on these matters to foolish and illiterate men? I will adopt that course. What they may think of it, I care not a nutshell. I will proceed to prove what I stated: that I had no reason whatever for using incantations to induce Pudentilla to form an alliance with me.

They took it upon themselves to disparage the looks and the age of this lady, and then they imputed it to me as a crime, that I desired to gain such a wife, in order to satisfy my avarice, and that for that reason, at the very earliest moment after our union, I wrested from her a large and ample fortune. It is not my intention to fatigue you, Maximus, by a lengthened speech in reply to this. There is no need of words, when the documents themselves speak so much more eloquently; documents by which you will find that I have acted throughout, both as regarded present arrangements, and provisions for the future, in a manner quite at variance with what they surmised of me, in conformity with their own rapacious dispositions. In the first place, then, the amount put in settlement by this lady of such vast wealth, you will find to have been but small, and that

amount not a sum paid down, but only secured in remainder. Besides this, you will find that the union took place upon these terms; in case she should depart this life without issue by me, the entire sum so settled was to go to her sons, Pontianus and Pudens; but, if she should die, leaving one such son or one daughter surviving her, then, in such case, one half of the sum was to go to the last born son, and the residue to the older ones. This, I say, I will prove, from the instrument itself. It may possibly happen, that not even then, Æmilianus will believe that only three hundred thousand pieces of money were so settled, and that by arrangement they were to go in reversion to the sons of Pudentilla.

Take this document in your own hands, [Æmilianus], and give it to your prompter, Rufinus, for him to read. Let him be ashamed of his swelling aspirations, and his ambitious mendicity; for he himself, though in utter want, and stripped naked, gave, as a marriage portion to his daughter, four hundred thousand pieces of money taken from a creditor; Pudentilla, on the other hand, a wealthy woman, has contented herself with a settlement of three hundred thousand pieces, and has a husband, too, who, after having many a time rejected settlements of ample sums, rests contented with the empty name of such a trifling sum as this, for he reckons all other things, except his wife, as nothing at all, and centres all his possessions and all his wealth in the concord of the marriage state, and in mutual attachment.

And yet, who, of all men that had the slightest knowledge even of the world, would have presumed to censure her, if a woman, who was a widow and of average good looks, but beyond mid age, being desirous to marry, had by offering an ample settlement and handsome terms, held out a temptation to a young man who was by no means to be despised either for his looks, his intellect, or his fortune? A beauteous virgin, even though she may chance to be utterly destitute, is still provided

with an ample marriage portion; for she brings to her new husband the winning nature of her disposition, the charms of her beauty, the first fruits of her maidenhood. The very recommendation itself of virginity is rightly and deservedly most highly esteemed by all husbands. For whatever else you gain by way of portion, you may, whenever you please, return the whole of it, so as to remain under no obligation whatever. Money you may repay in full, slaves you may restore, a house you may quit, an estate you may leave. Virginity alone, when once it has been bestowed, can never be returned; of the things that form a marriage portion, that alone must of necessity remain with the husband.

A widow, on the other hand, on a divorce taking place, departs just as she came on marriage; nothing does she bring that she may not reclaim; but she comes to you deflowered by another; to say the least, very far from being an apt scholar in carrying out your wishes; holding her new abode in no less suspicion than that in which, by reason of her separation from her former husband, she herself deserves to be held; whether it is that she has lost that husband by death, in which case, as being a woman of unlucky omen, and unfortunate in wedlock, she ought to be avoided; or whether it is, that she has been separated from him by divorce, in which latter case a woman must have one or the other of these two faults; she must have been either so unbearable as to have been repudiated, or else so froward as to have divorced herself. For these and other reasons it is, that widows generally invite suitors by more ample settlements; a thing that Pudentilla, even, might have done in the case of another husband, if she had not met with a philosopher who held all settlements in contempt.

Well, now, if I had desired to gain this lady in order to satisfy my avarice, what plan would there have been more feasible by which to gain possession of her house, than to sow discord

between the mother and her sons? to erase from her feelings all affection for her children, in order that I might the more freely and the more certainly, on being left without rivals, gain full possession of the desolate woman? Was not this the part of a robber such as you pretend that I am? and yet I, the author, promoter, and supporter of peace, and concord, and affection, not only did not sow new dissensions, but even utterly eradicated those which previously existed. I prompted my wife, the whole of whose property they assert I had already made away with, I prompted her, I say, and at last succeeded in persuading her, on her sons demanding repayment of their money, as I have already mentioned, to repay them without delay, and that in lands valued at a low figure, and at whatever price they themselves pleased. Besides this, out of her own private-property, I persuaded her to give them some of the most fertile of her farms, a fine house, too, fitted up in a most costly manner, with a great quantity of wheat, barley, wine, oil, and other products of the soil; slaves, too, no less than four hundred in number, and cattle not a few, and of no small value; and all this, that she might set them at ease as to that portion of her property which she thus gave them, and encourage them to be of good hopes as to the remainder. All this I obtained with great difficulty, and by urgent entreaties, from the angry and reluctant Pudentilla — for as such was the fact, she will not object to my saying so. I reconciled the mother to her sons; I enriched my step-sons, (who in this first experienced the benefit of having a step-father,) with a large sum of money. Throughout the whole city this fact was well known. All vented execrations against Rufinus, and lavished commendations upon me. Pontianus came to us, together with this brother of his, so unlike him in disposition, before his mother would consent to make this gift; and, throwing himself at our feet, asked us to forget and forgive all that had passed, weeping and kissing our hands, and saying how much he repented that he had listened

to Rufinus and those like him.

After that, he suppliantly entreated me to excuse him to Lollianus Avitus, that most illustrious man, to whom, shortly before, he had been recommended by me at the outset of his professional career; for he had become aware that a few days previously I had written and informed Avitus of every thing that had taken place. This, too, he prevailed upon me to do. Accordingly, furnished with a letter by me, he set out for Carthage, where, Maximus, the period of his proconsulship being now nearly expired, Lollianus Avitus was awaiting your arrival. After reading my letter, in conformity with his usual extreme kindness of disposition, he commended Pontianus for having so readily made amends for his error, and wrote back to me, by him, good Gods! what a letter! what a style, what wit, what grace and sweetness of expression! He wrote, in fact, just as a good man, and one skilled in the arts of eloquence, ought to write. I am sure, Maximus, that you will hear his letter with pleasure; and if I do read it, it shall be with my own lips. Hand me the letter of Avitus, that so, what has ever been an ornament to me, may now prove my safety too. You, in the meantime, may suffer the water [of the Clepsydra] to run on; for were I to read over the letter of that most excellent man three or four times, I would not think it lost time. [He reads the letter of Lollianus Avitus, which is now lost.]

I am not unaware that I ought, after that letter of Avitus, to come to a close. For whom can I produce to speak more abundantly in my commendation? what witness to my character more worthy of all confidence? what more eloquent advocate? Many eloquent men who bore the Roman name have I known and studied during my life, but never did I admire any one so much as him. There is not an individual at this day, in my opinion, of any name, of any promise in the arts of eloquence, but would greatly prefer to be Avitus, if, all envy laid aside, he

would think proper to institute a comparison between Avitus and himself. For in this one man are united all the various gifts of eloquence, even those that are almost opposite in their nature. Whatever the speech Avitus may compose, so perfect and finished will it be in all its parts, that in it Cato would not fail to find his own gravity, Lælius his smoothness, Gracchus his vehemence, Cæsar his vigorous subtlety, Hortensius his perspicuity, Calvus his wit, Sallust his terseness, nor Cicero his richness of expression; once, for all, I say, not to review each particular, if you were to hear Avitus, you would wish nothing added, nothing withdrawn, nothing changed. I see, Maximus, with what pleasure you hear those characteristics described, which you recognize as distinguishing your friend Avitus. It is your kindness that has induced me to say even this little of him. But I will not so far indulge your sympathy as to allow myself, nearly exhausted as I now am, and my defence drawing to its close, to begin at this late hour to descant on his exemplary virtues; but I will, in preference, reserve these topics for my recruited strength and a leisure opportunity.

For now, to my disgust, my discourse must be turned from the praises of a man of such eminent worth, to these pestilent wretches. And would you dare then, Æmilianus, to set yourself in comparison with Avitus? Him whom he pronounces to be a good man; him whose manner of life Avitus so abundantly commends in his letter, will you pursue with your charges of magic and criminality? Is it for you to be more annoyed at my thrusting myself into the house of Pudentilla and plundering her of her property, than was Pontianus, who, even in my absence, made full amends to me before Avitus, for the enmity of a few days into which he had been led by your instigation; and who expressed his gratitude to me in presence of a man of such eminence?

Suppose, now, I had stated what took place before Avitus, but had not read his letter, what would you, or what would any one, have found to censure in this matter? Pontianus himself declared that it was by my bounty he had received what had been presented to him by his mother; from his inmost heart Pontianus congratulated himself that it had fallen to his lot to have me for a step-father, and would that he had returned in safety from Carthage! or, since it was thus decreed by Pate, would that you, Rufinus, had not obstructed the carrying out of his latest intentions! What grateful thanks would he have expressed to me, either personally or in his last will! Still the letters which he sent to me from Carthage, as well as while on the road home — those written while in robust health, the others when reduced by sickness, but both replete with commendations of me, both filled with expressions of affection — these, Maximus, I beg you will allow, for a moment, to be read, in order that his brother, my accuser, may know how different in every respect is the career which he is running from that of his brother, a man of most blessed memory. [The letters of Pontianus are read.]

Rid you hear the epithets which your brother, Pontianus, bestowed on me; how, both repeatedly on other occasions, as also at his latest moments, he called me his parent, his master, his instructor? I could also produce letters of yours to the like effect, if I thought it worth while to waste a moment upon them. I would prefer, rather, that your brother's last will, unfinished as it is, should be produced, in which he makes most affectionate and most honorable mention of me. That will, however, Rufinus would not allow to be seen, nor even to be completed, through his vexation at losing the property; a property which he had valued at the large price of the nights of a few months during which he was the father-in-law of Pontianus. Besides this, he had consulted some Chaldæan astrologers or others, in what way he might dispose of his

daughter with profit to himself. They, as I hear, and I only wish that they had not in this given a true answer, replied that her first husband would die in the course of a few months. But the rest of their answer, as to his property, they framed, as is generally the case, just in conformity with the wishes of the person who consulted them. However, the Gods so willed it, that just like some blind beast, he opened wide his jaws, but got nothing at all. For Pontianus, on detecting her guilt, not only did not make the daughter of Rufinus his heir, but did not so much as leave her a decent legacy; but ordered that, as a mark of disgrace, linen cloth, of about two hundred denars in value, should be presented to her, in order that it might be understood that he had disinherited her, prompted by a feeling of indignation, and had not omitted her through forgetfulness.

For in this will, as well as in a former one which was read, he made his mother and his brother his heirs; the latter of whom, thoughts till a mere boy, as you see, Rufinus is plying with this same daughter of his, as his engine of attack, throwing her in his way, and thrusting upon this wretched youth a woman greatly his senior in age, and but recently the wife of his own brother. As for him, being captivated and enthralled by the allurements of the harlot of a daughter and the wiles of the pimp of a father, the moment that his brother breathed his last, he left his mother, and betook himself to his uncle, in order that, being at a distance from us, his designs might be the better put into execution. For Rufinus is a favourite with Æmilianus, who wishes him success in his plans. Good! it is well that you have reminded me: his own expectations, too, this worthy uncle, cherishes and promotes, by adopting this course, as he well knows that he is more likely to be the legal heir of the boy if he dies intestate, than his appointed heir under a will. By Hercules! I should have been sorry if that notion had originated with me. It is not in accordance with my moderation openly to give vent to what are the secret suspicions of all: it was wrong

on your part to suggest it.

At all events, Æmilianus, if you would have the truth, many persons are surprised at this affection of yours for this boy, which has so suddenly sprung up since the death of his brother Pontianus; whereas, before that, you were so much a stranger to him, that, many a time when you met him, you did not know by face the son of your own brother. Now, however, you show yourself so considerate of him, so spoil him by indulgence, are so careful not to thwart him in anything, as, by this course, to produce a confirmation of such suspicions. You received him from us a stripling; you instantly invested him with the privileges of puberty. As long as he was under our management, he was in the habit of attending masters; now, taking a wide flight from them, he makes for the brothel; his friends of steady demeanour he shuns, while, at his tender age, this young boy passes his life with young men of the most abandoned character, amid courtesans and cups. It is he who is the ruler in your house, it is he who is the head of your family, it is he who is the master of your banquets. At the gladiatorial exhibitions, too, he is a constant attendant, and, like a lad of gentility, he is instructed by his fencing-master in the names of the gladiators, their combats, and their wounds.

He never speaks but in the Punic tongue, or any little smattering of Greek he may still retain, after learning it from his mother. But in Latin he has neither the will nor the inclination to speak. You heard, Maximus, a short time ago, my step-son, the brother of Pontianus, a young man who was distinguished for his eloquence — shame and disgrace to him! — stammering out with the greatest difficulty a few syllables, at the time when you enquired of him whether his mother had presented to them the property which I asserted she had at my prompting so presented. I therefore call you to witness, Claudius Maximus, and you who are sitting here in judgment,

and you also who aid me with your presence on this my trial, that these corruptions, and scandals in his life, ought to be attributed to his uncle here, and to this candidate for the honor of being his father-in-law; and I protest that I shall, from this time forward, congratulate myself that such a stepson as this has shaken off from his neck the yoke of my guardianship, and shall no more think of entreating his mother in his behalf. — For, — I had all but forgotten to mention it — very recently, and since the death of her son Pontianus, Pudentilla, being then in bad health, was making her will, on which I had a struggle with her of considerable duration in order to prevent her from disinheriting him, in return for insults so glaring, for injuries SO numerous. With earnest entreaties I begged her to strike out [of the will] a most severe character of him, the whole of which, I solemnly declare, she had already written. In fine. I threatened to separate from her, if I did not prevail in my request. I entreated her to grant me this favour, to conquer her wicked son by kindness, and so release me from all chance of incurring hatred. Nor did I cease until she had complied with my request.

I am vexed that I have thus removed this ground of anxiety from Æmilianus, that I have pointed out to him a path so entirely unexpected. Do look, I beg of you, Maximus, how, on hearing this, he has suddenly become quite bewildered, how he has riveted his eyes upon the ground. For he had fancied, and not without reason, that the fact was far otherwise. He knew that this lady was offended at the insults offered by her son, and was strongly influenced by my attentions to her. As regarded me, too, he had good grounds for apprehension. For any person, even though he had been as much a despiser of wealth as I am, might still not have declined to take his revenge on a step-son who had shown himself so undutiful. It was this anxiety, above all, that urged them to bring this accusation against me. Arguing from a knowledge of their own avarice, they have wrongly conjectured that the whole of her property has been

left to me. As regards the past time, I will release you from that fear; for neither the opportunity of gaining property, nor yet revenge, were able to shake my mind in the position which it had taken. I, the step-father, struggled with his offended mother in behalf of a wicked step-son, just as though I had been a father striving with a step-mother in favour of his best of sons; nor was I content unless I checked, far more than I ought to have done, the abundant generosity of an affectionate wife, which was ready to be shown in my own favour.

Hand me the will which has been made by the mother since her son has been at enmity with her, and of which I, whom these people call a robber, prefaced each word with my entreaties. Order, Maximus, that document to be opened; you will find her son named as her heir, while to myself, as a mark of regard, there is left some trifling legacy or other; in order that, if anything should happen to her, I, the husband, might not find my name altogether omitted in the will of my own wife. Take that will, written by your mother, a will which is truly forgetful of the ties of duty. For why? In it she has disinherited a most attentive husband, while she has named as her heir a most vindictive son, or rather, I may say, not her son, but the hopes of Æmilianus, and the match designed by Rufinus, as well as that besotted crew, your parasites.

Take it, I say, best of sons, and lay aside for a moment the amatory epistles of your mother, and read her will in preference. If she has written anything when labouring under a kind of insanity, as it were, here you will find it, ay, and from the very beginning— “Let Sicinius Pudens, my son, be my heir.” He who reads that, I admit, will take her to be insane. “Is this son [he will say] appointed your heir, who, on the occasion of the very funeral of his brother, having called together a band of most abandoned youths, attempted to exclude you from the house which you yourself had presented to him? A youth who

was vexed and annoyed that you had been left by his brother joint-heir with himself? Who, amid your sorrow and mourning, instantly abandoned you, and fled from your bosom to Rufinus and Æmilianus? Who afterwards, before your very face, gave utterance to numerous insults, and, with the assistance of his uncle, was guilty of perpetrating others? Who bandied your name about before tribunals? Who attempted publicly to cast a stain upon your fair name, by producing your own letters against you? Who brought a capital charge against the husband of whom you had made choice, a husband whom, as he himself objected against you, you loved to distraction?" Open, worthy youth, open the will, I beg; by so doing you will the more easily prove your mother's insanity. Why do you decline? Why refuse? — that, too, after you have had all anxiety removed as to the inheritance of your mother's property. I will, however, Maximus, place this document here, in this spot, before your feet, and I protest that, from henceforth, I shall take much less interest in what it is Pudentilla inserts in her will. Let him, from this time forward, entreat his mother, as he pleases; to me he has left no grounds for supplicating any more in his behalf. Henceforth let him, as he is his own master, and addresses most virulent letters to his mother, take upon himself to assuage her wrath. He who could undertake a prosecution, will be able to plead his own cause.

It is quite enough for me, if I have not only most abundantly disproved the crimes laid to my charge, but have even utterly uprooted the grounds for bringing me to trial — I mean the envy on account of the property supposed to have been sought by me. That I may omit no one of all these things, I will prove, before I come to a conclusion, that this, too, has been falsely laid to my charge. You have asserted that with a large sum of money belonging to this lady, I have made purchase in my own name of a very fine estate. I say, in answer, that it was a small property, worth but sixty thousand pieces of money; and that I was not

the purchaser, but Pudentilla, who bought the estate in her own name; that the name of Pudentilla is in the purchase-deed, and that it is in the name of Pudentilla that the taxes are paid for this farm. The public quæstor is here present, to whom they have been paid, Corvinus Celer, a man of the highest character. There is also here the guardian and adviser of the lady, a man of the greatest respectability and of the most unblemished name, one who deserves to be mentioned by me with all honor and respect, Cassius Longinus, I mean. Ask him, Maximus, as in making this purchase he acted as her adviser, at what a trifling price it was that a lady so wealthy purchased this farm of hers. [Cassius Longinus and Corvinus Celer being questioned, gave their evidence.] Is it not as I said? Does my name anywhere appear in this purchase? Is the price paid for this little property any ground for complaint? Or, at all events, has it been transferred to me?

“What is there still remaining, Æmilianus, that I have not, in your judgment, refuted? What reward of my magical practices have you discovered? Why should I work upon the feelings of Pudentilla by incantations? To gain what advantages from her? Was it that she might make a trifling settlement upon me in preference to a large one? O charms of surpassing excellence! Or was it that she might enter into a new engagement, and settle her fortune in reversion upon her sons, rather than leave it to me? What else is there that can possibly be added to such a magic as this? Is it the fact that, at my entreaty, she presented the greater portion of her property to her sons, when, before she was married to me, she had given them nothing at all — this, too, while she bestowed nothing whatever upon myself? Oh atrocious crime, shall I say, or rather, oh kindness ill repaid? Or is it rather the fact that, in the will which she made when angered against her son, she left that very son with whom she was offended her heir, rather than myself, to whom she was so much attached? This I certainly did, after employing many

spells, with the greatest difficulty obtain. — Suppose, now, that this cause is being tried, not before Claudius Maximus, a man of equity and scrupulous justice, but substitute some other judge, a dishonest and cruel man, one who is an encourager of accusations, and anxious to condemn; give him some point upon which to fasten, supply him with ever so slight a ground, wearing the semblance of probability, on which he may be enabled to pronounce in your favour. At least, invent, devise something to say by way of answer, when he invites you so to do. And, as it is a matter of necessity that some cause or other should precede every effect, state, you who say that Apuleius influenced the mind of Pudentilla by magic spells, what it was he wanted of her, and why he did so. Was it her beauty he was anxious to gain? You say no. At all events, was it her riches that he coveted? The marriage-contract, the deed of gift, the will, say “no” to that, in all of which he is shown not only not to have grasped at with greediness, but even to have harshly repulsed, the liberality of his wife.

What other ground then is there? Why are you mute? Why do you not speak? Where is that fierce commencement of your charge, drawn up in the name of my step-son? “Him, my lord Maximus, I have determined to accuse before you.” — Why did you not add, then, to accuse my instructor, to accuse my step-father, to accuse my mediator?” But what comes next?—“of numerous offences, and those most evident.” Of these so “numerous,” produce but a single one; of these offences “most evident,” produce but one which is even so much as dubious, one which can even sustain a moment’s question.

To each of your innumerable charges I answer in a couple of words. “You clean your teeth” — Pardon my cleanliness. “You look in a mirror” — A philosopher ought. “You compose verses”— ’Tis not unlawful to do so. “You examine fishes” — Aristotle teaches me. “You make Gods of wood” — Plato advises

it. “You marry a wife” — The laws enjoin it. “She is older than you” — No uncommon thing. “You have sought to advantage yourself” — Take up the deed of settlement, recollect the gifts you have received, read over her will.

If I have abundantly rebutted all these charges; if I have refuted all these calumnies; if, amid not only all the accusations, but even all the aspersions uttered against me by these persons, I have kept philosophy aloof from censure; if I have in no way blemished the honour of philosophy, which is dearer to me than my own well-being, nay, rather, if I have kept it most carefully shielded on every side; if, in each of these respects, what I say is found to be the truth, then I may more securely afford to respect your good opinion than to dread your power; seeing, I deem it less grievous and less to be dreaded by me, to be condemned by a proconsul, than to incur the censure of a man so good and so virtuous as yourself.